

Guide to the Radio Equipment Directive

Directive 2014/53/EU

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Disclaimer

This Guide is intended to serve as a manual for all parties directly or indirectly affected by the Radio Equipment Directive 2014/53/EU¹ (RED). It should assist in the interpretation of the RED but cannot take its place; it explains and clarifies some of the most important issues related to the Directive's application. The Guide also aims to disseminate widely the explanations and clarifications reached by consensus among Member States and other stakeholders.

This Guide is publicly available but is not binding in the sense of a legal act adopted by any of the EU institutions, even if the word 'shall' is used in many parts of this Guide. In the event of any inconsistency between the provisions of the RED and this Guide, the provisions of the RED prevail.

The Commission accepts no responsibility or liability whatsoever regarding the information in this guide. The information:

- is of a general nature only and is not intended to address the specific circumstances of any individual or entity.*
- is not necessarily comprehensive, complete, accurate or up to date.*
- sometimes refers to external information over which the Commission has no control and for which the Commission assumes no responsibility.*
- does not constitute legal advice.*

Moreover, attention is drawn to the fact that all references to the CE marking, and EU Declaration of Conformity relate to RED only and radio equipment only benefit from the free circulation in the Union market if the product complies with the provisions of all the applicable Union legislation.

Reference is therefore made, whenever necessary but not always, to other EU legal acts. This Guide does not serve as guidance for these other EU legal acts.

The authentic versions of the RED and the EU legal acts mentioned in this Guide, including their preambles, are those published in the Official Journal of the European Union and made available in EUR-Lex. Those official texts are directly accessible through the links embedded in this document.

In EUR-Lex, the reader may find the full legal text of the RED and of other EU legal acts mentioned in this Guide, as well as the most recent consolidated version of EU legislation and summary documents, noting that the consolidated texts and the summary documents in EUR-Lex are meant purely as a Documentation tool and have no legal effect.

¹ [Directive 2014/53/EU](http://eur-lex.europa.eu/legal-content/EN/TXT/?uri=celex:32014L0053) of the European Parliament and of the Council of 16 April 2014 on the harmonisation of the laws of the Member States relating to the making available on the market of radio equipment and repealing Directive 1999/5/EC (OJ L 153, 22.5.2014, p 62).
<http://eur-lex.europa.eu/legal-content/EN/TXT/?uri=celex:32014L0053>

Introduction

The purpose of this document is to give guidance, subject to the preceding disclaimer, on certain matters and procedures pertaining to the Radio Equipment Directive 2014/53/EU² (hereinafter referred to as 'the RED'), which is applicable as of 13th June 2016. This Guide brings together information previously available in several TCAM documents and related Commission's websites.

This Guide is based on the RED and on the "New Legislative Framework"³ described in the "Blue Guide 2022" (hereinafter referred to as the "Blue Guide")⁴ and does not duplicate what is already contained in the Blue Guide which addresses horizontal matters. Hence, this Guide should be read in conjunction with the Blue Guide.

Moreover, other more specific guidance or documents might be issued by the Commission services, TCAM or ADCO RED⁵ providing guidance or information on specific topics or items, for example:

- Guidance for the interpretation of the Common Charger Directive;⁶
- Subclasses: class 1 equipment;⁷
- Notification of draft interface regulations;⁷
- National language requirements of the national implementation of the RED.⁸

This version replaces the previous versions of 19 May 2017, 5 June 2018 and 19 December 2018.

² [Directive 2014/53/EU](#) of the European Parliament and of the Council of 16 April 2014 on the harmonisation of the laws of the Member States relating to the making available on the market of radio equipment and repealing Directive 1999/5/EC (OJ L 153, 22.5.2014, p 62).

³ [Regulation \(EU\) 2019/1020](#) of the European Parliament and of the Council of 20 June 2019 on market surveillance and compliance of products and amending Directive 2004/42/EC and Regulations (EC) No 765/2008 and (EU) No 305/2011) -

[Regulation \(EC\) No 765/2008](#) of the European Parliament and of the Council of 9 July 2008 setting out the requirements for accreditation and market surveillance relating to the marketing of products and repealing Regulation (EEC) No 339/93 (OJ L 218, 13.8.2008).

[Decision No 768/2008/EC](#) of the European Parliament and of the Council of 9 July 2008 on a common framework for the marketing of products, and repealing Council Decision 93/465/EEC (OJ L 218, 13.8.2008).

⁴ [Commission notice The 'Blue Guide' on the implementation of EU product rules 2022 - C/2022/3637 \(OJ C 247, 29.6.2022 C/2022/3637\)](#)

⁵ ADCO RED documents do not necessarily represent the opinion of the Commission or TCAM.

⁶ [C/2024/2997](#).

⁷ [Radio Equipment Directive \(RED\) - European Commission](#)

⁸ ADCO RED - <https://ec.europa.eu/docsroom/documents/46453>

1. SCOPE

1.1. General

The RED covers radio equipment as described in section 1.7 and is applicable from 13th June 2016.

Member States shall not impede, for reasons relating to aspects covered by the Directive, the making available on the market in their territory of radio equipment which complies with the RED.

It is noted that RED applies in relation to the aspects it covers. Hence, radio equipment can be prohibited if it falls also within the scope of another legislation, regulating other aspects (such as environmental risks), and that radio equipment is not compliant with that other legislation (see also section 10).

In addition, as provided for in Article 113 of the European Electronic Communications Code (EECC), Member States may introduce interoperability requirements for broadcast receivers, including the capability to receive digital terrestrial radio. On that basis, some Member States have prohibited the sale of FM-only receivers at national level.

1.2. Geographic application

1.2.1. Application in non-EU States, countries & territories

The geographical application is described in Chapter 2.9 (geographical application) of the Blue Guide.

The RED also applies in the EEA-EFTA States (Liechtenstein, Iceland, and Norway) and in Türkiye.

Therefore, in the context of this Guide, the terms “European Union”, “Union”, “territory” or ‘Member States’ also cover the EEA-EFTA States (Liechtenstein, Iceland, and Norway) and Türkiye.

1.2.2. DCFTAs (EU-Ukraine Moldova and Georgia Deep Comprehensive Free Trade Area)

There are agreements with Ukraine⁹, Moldova¹⁰ and Georgia¹¹ that provides, among other things, that Ukraine, Moldova and Georgia shall align its legislation with the RED - DCFTA. However, that agreement does not (as regards the

⁹ <https://trade.ec.europa.eu/access-to-markets/en/content/eu-ukraine-deep-and-comprehensive-free-trade-area>

¹⁰ <https://trade.ec.europa.eu/access-to-markets/en/content/eu-moldova-deep-and-comprehensive-free-trade-area>

¹¹ <https://trade.ec.europa.eu/access-to-markets/en/content/eu-georgia-deep-and-comprehensive-free-trade-area>

alignment with the RED) have adaptations as is the case with, for example, the EEA agreement (on how to read the term 'Member State'). Therefore, manufacturers, when preparing the pictogram (under Article 10.10 RED) might include the abbreviation of Ukraine, Moldova or Georgia, because of the RED approximation in Ukraine, Moldova and Georgia in accordance with the above agreement; however, given that there are no adaptations (for the RED), it should not be an obligation to include Ukraine, Moldova and Georgia in the pictogram, for products placed on the EU market; in addition, where Article 10.2 of the RED provides '...it can be operated in at least one Member State...', that expression does not (shall not read to) include Ukraine, Moldova or Georgia.

1.2.3. Mutual Recognition Agreements (MRAs)

MRAs are agreements established between the Union and third countries for the purpose of mutual recognition of conformity assessment. It is noted that it depends on the scope of each MRA, before deciding if it relates with RED.

Specific information on MRAs may be found in Chapter 9.2 (Mutual Recognition Agreements - MRA) of the Blue Guide and the relevant Commission's website¹².

1.2.3.1. MRA with Switzerland

The MRA concluded with Switzerland, which entered into force on 1 June 2002,¹³ is a comprehensive agreement.

According to the Blue Guide, 'despite the MRA, there is no customs union between the EU and Switzerland'. A product placed on the market in Switzerland is not considered as being placed on the EU market.

Annex 1, Chapter 7, of the Agreement as amended by Decision No 1/2017 of the Committee established under the Agreement contains adaptations on the RED. In addition, the Swiss legislation on Radio Equipment is adapted to the RED.

The RED and this Guide shall be read in conjunction with the adaptations in the MRA. The most important adaptations which relate with the obligations of the economic operators are the following:

- (a) for the purpose of the obligations in Articles 10(7) and 12(3) of the RED and the corresponding Swiss provisions, it shall be sufficient to indicate the name, registered trade name or registered trademark and the postal address at which the manufacturer established within the territory of either the European Union or Switzerland can be contacted. In cases where the manufacturer is not established within the territory of either the European Union or Switzerland, it shall be sufficient to indicate the name, registered trade name or registered trademark and the postal address at which the importer established within the territory of either the European Union or Switzerland can be contacted.

¹² [List of mutual recognition agreements](#)

¹³ OJ L 114, 30.4.2002, p. 369.

- (b) for the purpose of the obligations in Articles 10(4) and 12(8) of the RED and the corresponding Swiss provisions, it shall be sufficient that the manufacturer established within the territory of either the European Union or Switzerland keep the technical Documentation and the EU declaration of conformity for 10 years after the radio equipment has been placed on the market in either the European Union or Switzerland. In case the manufacturer is not established within the territory of either the European Union or Switzerland, it shall be sufficient that the importer established within the territory of either the European Union or Switzerland keep a copy of the EU declaration of conformity at the disposal of the market surveillance authorities and ensure that the technical Documentation can be made available to those authorities upon request for 10 years after the radio equipment has been placed on the market in either the European Union or Switzerland;
- (c) for the purpose of the obligations in Article 10(5), second subparagraph, and 12(6) of the RED and the corresponding Swiss provisions, it shall be sufficient that such obligations be fulfilled by the manufacturer established within the territory of either the European Union or Switzerland, or, in case the manufacturer is not established within the territory of either the European Union or Switzerland, by the importer established within the territory of either the European Union or Switzerland.
- (d) manufacturers shall ensure that radio equipment shall be so constructed that it can be operated in at least one Member State or Switzerland without infringing applicable requirements on the use of the radio spectrum. In cases of restrictions on putting into service or of requirements for authorisation of use of radio equipment, information on the packaging shall identify restrictions existing in Switzerland, Member States or geographical areas within their territory.
- (e) for the purpose of the obligation in Article 11(2) of the RED and the corresponding Swiss provisions, authorised representative shall mean any natural or legal person established within the European Union or Switzerland who has received a written mandate from a manufacturer to act on his behalf pursuant to Article 11(1) of the RED or the corresponding Swiss provisions.

Note 1: the above adaptations concern only the RED. For other EU legal acts, there might be similar adaptations, different adaptations or there might be no adaptations.

Note 2: for the tasks described in Article 4 of [Regulation \(EU\) 2019/1020](#) on market surveillance, there must be an economic operator who is established in the EU (even when the products are imported from Switzerland to the EU). For that provision, at the time of preparation of this Guide, there are no adaptations.

1.2.4. Agreements on Conformity Assessment and Acceptance (ACAAs)

Agreements on Conformity Assessment and acceptance of industrial products are intended to be established between the Union and the government of EU Neighboring countries (for more details see Chapter 9.1 of the Blue Guide).

1.2.5. “Brexit”

Since 1 February 2020, the United Kingdom has withdrawn from the European Union and has become a ‘third country’.

The consequences of the withdrawal of the UK for the RED is explained in a notice to stakeholders¹⁴. In relation to article 10.10 RED there exist a specific guidance document ¹⁵.

The EU Declaration of Conformity (or the simplified one) shall declare compliance with the applicable EU legislation only (hence should not refer to legislation of third countries). This however does not prohibit a manufacturer from including, separately, other certificates or declarations for the purposes of compliance with legislation of third countries.

For more information consult chapters 2.9.5 (“Withdrawal of the United Kingdom from the EU”) and 2.9.6 (“Northern Ireland”) of the Blue Guide.

1.3. Placing on the market

The RED applies to radio equipment placed on the EU market and then to any subsequent operation which constitutes making available until it reaches the end-user.

A product is placed on the EU market when it is made available for the first time on the Union market. Placing on the market refers to each individual product, not to a type of product, and whether it was manufactured as an individual unit or in series. Some products outside the EU can be bought directly by end-users in the EU online or through other means of distance sales. Although these products are deemed to be made available in the Union prior to any transaction for the purposes of checks by market surveillance authorities pursuant to Regulation (EU) 2019/1020, they are placed on the market at the moment an order by an end user has been placed and confirmed for a specific product already manufactured and subject of the transaction, and ready to be shipped. For further information on when a product is considered to have been placed on the market, please refer to section 2.4 of the Blue Guide.

Radio equipment shall comply with the legal requirements that were in place at the time of its placing on the market.

In some Member States, restrictions for putting into service of radio equipment may exist (see Article 7 of the RED and section 1.4 of this Guide). In cases where all Member States have introduced restrictions preventing the use of the equipment, manufacturers have an obligation not to place the equipment on the market. Except when the restriction is a licence. See 1.4.

When radio equipment is constructed for own use or bought by a consumer in a third country while physically present in that country and brought by the consumer into the EU for the personal use of that person (only if national

¹⁴ https://commission.europa.eu/document/download/8e110658-4b76-498b-8678-46fcca3641fb_en?filename=notice_to_stakeholders_industrial_products.pdf

¹⁵ <https://ec.europa.eu/docsroom/documents/43664>

spectrum regulation allows the use.), it is not considered to be placed on the market, but the RED could be applicable due to national legislation. For details on the placing on the market and making available on the market, see Chapters 2.1, 2.2 and 2.3 of the Blue Guide.

1.4. Putting into service

Member States shall allow the putting into service and use of radio equipment if it complies with the RED when it is properly installed, maintained, and used for its intended purpose. Notwithstanding the forgoing, a Member State may introduce restrictions for the putting into service and/or use of radio equipment for reasons related to the effective and efficient use of the radio spectrum, to the avoidance of harmful interference, to the avoidance of electromagnetic disturbances or to public health. (Article 7 of RED). This section should also be read in conjunction with section 1.1 of this Guide.

1.5. Repairs - Software updates

The RED covers radio equipment which are new to the Union market when placed on the market (either new products made by a manufacturer established in the Union or products, whether new or second-hand, imported from a third country).

According to Chapter 2.1 of the Blue Guide, a product which has been subject to important changes or overhaul after it has been placed on the market/put into service must be considered as a new product.

Generally, software updates or repairs of radio equipment could be assimilated to maintenance operations provided that they do not modify a product already placed on the market in such a way that compliance with the applicable requirements may be affected.

As is the case for physical repairs or modifications, a product should be considered as substantially modified by a software change where:

- (a) the software update modifies the original intended functions, radio interface, type or performance of the product and this was not foreseen in the initial risk assessment.
- (b) the nature of the hazard has changed, or the level of risk has increased because of the software update; and
- (c) the product is made available .

1.6. Special measures regarding radio equipment at trade fairs, etc.

According to Chapter 2.3 of the Blue Guide, placing on the market is considered not to take place where a product is displayed or operated under controlled conditions at trade fairs, exhibitions or demonstrations.

Article 9.2 of the RED contains *the following* details on the conditions applicable at trade fairs, exhibitions or demonstrations:

- A visible sign **clearly** indicates that such radio equipment may not be made available on the market or put into service until it has been brought into conformity with this Directive;
- Demonstration of radio equipment may only take place provided that adequate measures, as prescribed by Member States, have been taken to avoid harmful interference, electromagnetic disturbances and risk to the health or safety of persons or of domestic animals or to property.

If the radio equipment contains a transmitter, the relevant national spectrum authorities have to be contacted if a manufacturer wishes to demonstrate the use of such equipment¹⁶. See als the document issued by ADCO RED: «National requirements for spectrum use during demonstrations and field tests» <https://ec.europa.eu/docsroom/documents/48414>

1.7. Radio equipment

1.7.1. What is radio equipment (for the purposes of the RED)?

Radio equipment is defined in Article 2.1(1) of the RED as *an electrical or electronic product, which intentionally emits and/or receives radio waves for the purpose of radio communication and/or radio determination, or an electrical or electronic product which must be completed with an accessory, such as antenna, so as to intentionally emit and/or receive radio waves for the purpose of radio communication and/or radio determination*;

The term 'radio communication' is defined in Article 2.1(2) of the RED as communication by means of radio waves.

The term 'radiodetermination' is defined in Article 2.1(3) of the RED as the determination of the position, velocity and/or other characteristics of an object, or the obtaining of information relating to those parameters, by means of the propagation properties of radio waves.

The term 'radio waves' is defined in Article 2.1(4) of the RED as electromagnetic waves of frequencies lower than 3 000 GHz, propagated in space without artificial guide. This also includes the use of electromagnetic fields for near field communication and/or determination applications (NFC, cochlear implants, terahertz imaging/sensing (FIR <3 THz), ...).

According to Article 2.2 of the RED, the Commission may adopt implementing acts to determine whether certain categories of electrical or electronic products meet the definition of a radio product. Therefore, the examples mentioned below do not prejudice or affect a future implementing act under Article 2.2. If an implementing act is adopted, the examples will be reviewed accordingly.

¹⁶ If during the development and production of a given Radio Equipment, samples or pre-production units of that equipment need to be operated in normal use locations for testing or validation purposes (so called “field tests”), then the relevant national spectrum authority also has to be contacted.

1.7.2. What is internet connected radio equipment or wearable radio equipment (for the purposes of applicability of the essential requirements of the RED relating to cybersecurity)?

Radio equipment could be also classified as internet connected or wearable radio equipment, under [Commission Delegated Regulation \(EU\) 2022/30](#) of 29 October 2021, supplementing the RED, with regard to the application of the essential requirements referred to in Article 3(3), points (d), (e) and (f), of the RED (essential requirements of the RED relating to cybersecurity).

With 'internet-connected radio equipment', it is meant radio equipment that can communicate itself over the internet, whether it communicates directly or via any other equipment. Section 12.1 to this Guide provides some guidance to the assessor to define if the radio equipment is 'internet-connected', which is relevant for the applicability of of Article 3(3) (d)-(f) of the RED, due to the terms used in [Commission Delegated Regulation \(EU\) 2022/30](#).

With 'wearable radio equipment', it is meant radio equipment that is designed or intended, whether exclusively or not exclusively, to be worn on, strapped to, or hung from any part of the human body (including the head, neck, trunk, arms, hands, legs and feet) or any clothing (including headwear, hand wear and footwear) worn by human beings such as radio equipment in the form of wrist watch, ring, wristband, headset, earphone or glasses. However, this is limited to the portable devices that are used for monitoring and registering sensitive data (e.g. fitness trackers, smart watches, smart rings, etc.), thus rather used in close distance to the human body and not to any other equipment that can be hung around the neck or strapped around the hand- (e.g. Cameras, etc.). Radio equipment solely used in the hand (e.g. smartphones, etc.), is not covered by the meaning of wearable.

Moreover, implants should not be considered as wearable radio equipment as they are not worn on, strapped to, or hung from any part of the human body or any clothing.

Implants should be deemed to be 'internet-connected radio equipment', if they are capable themselves to communicate over the internet, regardless if they communicate directly or via any other equipment.

Note: This section only provides guidance on two terms used in [Commission Delegated Regulation \(EU\) 2022/30](#), but does not provide guidance on the exact scope of that Delegated Regulation.

1.7.3. What is explicitly excluded from the scope of the RED?

Article 1.3 and Annex I of the RED, exclude explicitly from its scope the following radio equipment.

1.7.3.1. Radio equipment exclusively used for activities concerning public security, defence, State security

The Directive does not apply to radio equipment exclusively used for activities concerning public security, defence, State security, including the economic well-being of the State in the case of activities pertaining to State security matters, and the activities of the State in the area of criminal law. In this case, the radio

equipment which is exempted from the RED will be covered by the LVD and EMC¹⁷ (if LVD would not be applicable because of voltage limits, then the GPSR would be applicable for electrical safety and health).

Dual use equipment, i.e. equipment for civil and military use (or other activities listed above), does not fall under this exclusion.

For example, radio equipment in TETRA systems are widely used by the police and other public authorities dealing with public security, however, they are subject to the RED because they are not exclusively used for the activities excluded from its scope.

1.7.3.2. Radio equipment used by radio amateurs

The RED excludes radio equipment used by radio amateurs within the meaning of Article 1, definition 56, of the International Telecommunications Union (ITU) Radio Regulations, unless the equipment is made available on the market. The following equipment shall be regarded as **not** being made available on the market.

- (a) radio kits for assembly and use by radio amateurs;
- (b) radio equipment modified by and for the use of radio amateurs;
- (c) equipment constructed by individual radio amateurs for experimental and scientific purposes related to amateur radio.

The assessment whether the transfer of radio amateur equipment between radio amateurs or intended for radio amateurs shall be considered as making available on the market shall be done on a case by case basis taken into account the regularity of the supplies, the characteristics of the product, the intentions of the supplier etc. The occasional transfer of radio equipment between radio amateurs may be considered as not making available on the market. However, if supply is regular or there is a business related context then it may be considered as making available on the market, in the course of commercial activity whether in return for payment or free of charge. (Blue Guide, Chapter 2.2).

1.7.3.3. Marine equipment

Annex I.2 of the RED refers to equipment falling within the scope of Council Directive 96/98/EC¹⁸ on marine equipment.

Directive 2014/90/EU¹⁹ repealed as of 18 September 2016, Council Directive 96/98/EC. Article 40 of Directive 2014/90/EU provides that references to the repealed Directive shall be constructed as references to this Directive.

¹⁷ [Directive 2014/30/EU](https://eur-lex.europa.eu/eli/dir/2014/30/oj/eng) of the European Parliament and of the Council of 26 February 2014 on the harmonisation of the laws of the Member States relating to electromagnetic compatibility (recast) <https://eur-lex.europa.eu/eli/dir/2014/30/oj/eng>

¹⁸ Council Directive 96/98/EC of 20 December 1996 on marine equipment (OJ L 46, 17.2.1997), as amended by Council and Parliament Directive 2002/84/EC (OJ L 324, 29.11.2002).

¹⁹ [Directive 2014/90/EU of the European Parliament and of the Council of 23 July 2014 on marine equipment](#) (OJ L 257, 28.08.2014).

Thus equipment within the scope of Directive 2014/90/EU is excluded from the RED. Directive 2014/90/EU covers equipment which has to be carried on ships which are subject to International Maritime Organisation (IMO) Conventions e.g. Safety of Life at Sea (SOLAS). However radio equipment may comply with both legislations. Such products will have to carry both marks of conformity, the CE marking for the compliance with the RED and the Wheel mark for the compliance with Directive 2014/90/EU.

Marine radio equipment intended to be used on vessels for which marine radio equipment in accordance with the Marine Equipment Directive are not required, is thus covered by the RED (unless if another exemption of the RED is applicable).

1.7.3.4. AMRD, Autonomous Maritime Radio Devices

AMRD, Autonomous Maritime Radio Devices are within the scope of the RED. AMRD group A devices are also in the scope of Commission Decision 2005/53/EC of 25 January 2005 on the application of Article 3(3)(e) of Directive 1999/5/EC of the European Parliament and the Council to radio equipment intended to participate in the Automatic Identification System (AIS) (OJ L 22, 26.1.2005, p. 14); and Commission Decision 2013/638/EU of 12 August 2013 on essential requirements relating to marine radio communication equipment which is intended to be used on non-SOLAS vessels and to participate in the Global Maritime Distress and Safety System (GMDSS) (OJ L 296, 7.11.2013, p. 22);

1.7.3.5. Airborne equipment

Ground aviation radio equipment is covered by the RED (unless if another exemption of the RED is applicable).

Regulation (EU) 2018/1139²⁰, applicable as of 11/9/2018, repealed and replaced Regulation 216/2008. The major amendment concerns the widening of the scope by the inclusion of unmanned aircraft (drones) intended to operate only on frequencies allocated by the Radio Regulations of ITU (International Telecommunications Union) for protected aeronautical use.

Radio equipment within the scope of the Regulation (2018/1139) is excluded from the RED and EMCD other than the following aviation equipment (i.e. the following equipment is covered by the EMCD or RED even if it falls within the scope of Regulation 2018/1139):

- (a) radio equipment not intended for exclusive airborne use (e.g. ground aviation radio equipment);
- (b) drones in the 'open category' as well as the 'specific category';

²⁰ Regulation (EU) 2018/1139 of the European Parliament and of the Council of 4 July 2018 on common rules in the field of civil aviation and establishing a European Union Aviation Safety Agency, and amending Regulations (EC) No 2111/2005, (EC) No 1008/2008, (EU) No 996/2010, (EU) No 376/2014 and Directives 2014/30/EU and 2014/53/EU of the European Parliament and of the Council, and repealing Regulations (EC) No 552/2004 and (EC) No 216/2008 of the European Parliament and of the Council and Council Regulation (EEC) No 3922/91 (Text with EEA relevance.)

- (c) drones in the 'certified category'²¹ if not intended to operate only on frequencies allocated by the Radio Regulations of the International Telecommunication Union for protected aeronautical use.

Without prejudice to the other exemptions of the RED/EMCD:

- (a) the equipment mentioned in paragraph (a)-(c) above is covered by the RED when it emits and/or receives electromagnetic waves of frequencies below 3000 GHz for the purpose of radio communication and/or radiodetermination. In all other cases, that equipment is covered by the EMCD;
- (b) where, for ground aviation equipment, the essential requirements set out in Annex I of the EMCD are wholly or partly laid down more specifically by other Union legislation, the EMCD shall not apply, or shall cease to apply, to that equipment in respect of such requirements.²²

1.7.3.6. Custom-built evaluation kits

RED introduces an exemption for the custom-built evaluation kits destined for professionals to be used solely at research and development facilities for such purposes (Annex I.4 of the RED).

The exemption includes several elements and only if the products fulfil all the elements can be exempted, on the basis of Annex I.4 of the RED, from the scope of the RED:

- Custom-built
 - i. A kit that has been built on the basis of a specific request from a specific customer or from a group of customers involved in a joint research and development project as for all or certain characteristics of the evaluation kit
 - OR
 - ii. A kit that has been built for the specific requirements of a specific customer or a group of customers involved in a joint research and development project as for all or certain characteristics of the evaluation kit.

The unique design and characteristics of the kit makes it solely suitable for that research and development project.

If that evaluation kit is later on provided on a regular basis or once the kit is not used for that joint research and development project purpose, it can no longer be considered a custom-built evaluation kit.

- Evaluation kits
 - A printed circuit board with an integrated circuit and support components to produce a working circuit for evaluation and development.

²¹ Certified in accordance with Article 56(1) of Regulation (EU) 2018/1139.

²² Article 2 (3) of the EMCD.

- Destined for professionals (customers), to be used solely at research and development facilities
Research and development facilities meaning public or private research and development bodies.
- For research and development purposes
Evaluation kits to be used in testing for further development/ improvement of the function of the equipment under research and development.

Non-exhaustive list of examples of evaluation kits that do not benefit from this exemption (even if there is a possibility for the user to adapt it to his specific needs or to build it himself):

- All devices/equipment used on a regular basis (such as laboratory equipment) to perform tests for the purposes of research and development or for other applications such as to demonstrate the conformity or quality of a product.
- Evaluation equipment for users in general in R&D departments (in this case, the equipment is always the same and is not "custom built").
- Free programmable SDR "black box" FPGA like Adalm-Pluto,

1.7.4. Specific cases / examples (non-exhaustive)

1.7.4.1. Radio equipment functioning with non-radio electrical products

Electrical or electronic products whose function is not to intentionally emit or receive radio waves for the purpose of radio communication and/or radiodetermination (in this section referred to as 'non-radio product') may function with radio equipment.

The RED is applicable to the combination of the radio equipment and the non-radio product as a whole only if the radio equipment is:

- incorporated into the non-radio product; and
- permanently affixed to the non-radio product.

Hence if the radio equipment is incorporated in a fixed and permanent way in the non-radio electrical product at the moment of its placing on the EU market (i.e. in such a way that it cannot be easily accessed and readily removed), as specified above, this product is deemed to be a single product. In the other cases the radio equipment and the non-radio product are considered as separate finished products and only the radio equipment is subject to the RED.

Note: This section, by referring to electrical products, mainly captures household and similar appliances. It does not capture big industrial machinery or vehicles.

1.7.4.2. Radio equipment functioning with non-electrical products

Equipment covered by RED may be included in or attached to non-electrical products. In this section the combination of electrical/electronic equipment and non-electrical product is referred to as 'final product'.

- When equipment, covered by the RED and that was not placed on the EU market, is included in or attached to a non-electrical product

The economic operator who is placing the final product on the EU market shall be considered as the manufacturer and shall follow the obligations enumerated below (see 1.7.4.2.1)

- When equipment covered by the RED and that is already placed on the EU market, is included in or attached to a non-electrical product

The economic operator who is placing the final product on the EU market shall be considered as the manufacturer and shall follow the obligations enumerated below (see 1.7.4.2.1) if the intended function or performance of the radio equipment is modified; or the compliance is impacted

1.7.4.2.1. Obligations

- The compliance of the radio equipment with the RED shall be determined and ensured;
- the risk assessment of the radio equipment shall address its intended use by ensuring that, when it operates in combination with the intended non-electrical product, the conformity of the final product is fulfilled; and
- the CE marking, the contact details and any required information shall be affixed as according the applicable directive.

1.7.4.3. Multimode radio equipment

It is possible to legally place on the market multimode radio equipment with modes that can legally be operated in at least one EU/EEA/EFTA country and other modes that cannot be legally operated in any of EU/EEA/EFTA countries.

Multimode radio equipment is radio equipment that has different modes of operation, including for example the use of different radio frequencies, different transmitting power, different channel access protocols. The user can typically choose the mode of operation.

With respect to the conformity assessment, all the intended operating conditions shall be taken into account by the manufacturer, when evaluating the conformity of the product as per Article 17.1 of the RED. In the case of the essential requirement laid down in Article 3.1.(a), all reasonably foreseeable conditions should also be taken into consideration.

The conformity assessment under the RED is limited to the modes that are intended to be used in the EU/EEA/EFTA. In other words, the manufacturer does not have the obligation to assess modes intended to be used in third countries (non-permitted modes, hereinafter).

This being said, the manufacturer may need to apply concrete safeguards for the non-permitted modes. In this respect, Article 17.1 of the RED needs to be read under the risk assessment perspective. In particular, a risk analysis has to be carried out by the manufacturer in order to determine the impact of the non-permitted modes on the assets that the RED aims at protecting, such as the users' health and safety or the efficient use of the radio spectrum, among others.

The elements that the manufacturer has to take into account for this activity include: the easiness of activating a non-permitted mode, according to the design of the product or to the potential user profile; and the impact of an illegal mode on the assets protected by the RED. Please note that this list is not exhaustive.

Finally, instructions and safety information shall duly reflect the relevant information so that the user can make an appropriate use of the product avoiding any circumvention of the RED once the product has been placed on the market.

1.7.4.4. Infrared devices (IR)

The terms 'radio communication', 'radiodetermination' and 'radio waves', mentioned in the definition of 'radio equipment' (Article 2.1 of the RED), are defined as follows:

- Article 2.2: "radio communication" means communication by means of radio waves.
- Article 2.3: "radiodetermination" means the determination of the position, velocity and/or other characteristics of an object, or the obtaining of information relating to those parameters, by means of the propagation properties of radio waves
- Article 2.4: "radio waves" means electromagnetic waves of frequencies lower than 3 000 GHz, propagated in space without artificial guide.

Whereas IR conventionally extends from 300 GHz to 430 THz, devices operating in the lower part of the IR spectrum, i.e. that between 300 GHz and 3000 GHz (terahertz band), which corresponds to wavelengths between 1mm and 100µm (far infrared) are subject to the RED. IR devices operating solely at higher frequencies do not fall under the RED.

1.7.4.5. Products that use electromagnetic waves exclusively for other purposes than radio communication and/or radiodetermination

Products and applications that use electromagnetic waves exclusively for other purposes than radio communication and/or radiodetermination (products that propagate electromagnetic waves in space, but this propagation is not intended and not used for the purpose of radio communication or radiodetermination.) are not covered by the RED, for example:

- inductive warming and heating appliances;
- pure wireless power transfer systems (without any radio communication or radiodetermination functionality);
- high frequency surgical equipment and systems;
- cookware suitable for inductive heating appliances (without any radio communication or radiodetermination functionality);

- test equipment if intended to use radio waves, exclusively, for testing other devices.²³

1.7.4.6. Antennas

Antennas may be subdivided into “active” and “passive” types. “Active” antennas are supplied with one or more active electronic components (as diodes, transistors) interacting with the RF-signal. All other antennas are in general considered “passive”.

Taking in account the definition of radio equipment in Article 2 of the Directive, passive antennas are not covered by RED if placed on the market as a single commercial unit.

A radio equipment with the antenna attached is subject to all the requirements of RED. The interface between the radio product and the provided antenna need not be assessed in this case, unless the radio part without the antenna is also made available on the market.

In contrast, active antennas (i.e. antennas including one or more active electronic components that interact with the RF signal as e.g. amplifier) are always covered by the RED.

1.7.4.7. Amplifiers and other equipment intended to be connected to antennas

The applicability of the RED depends on the intended use declared by the manufacturer. Therefore, amplifiers and other electronic equipment (e.g. filters, splitters, convertors, transverters, antenna tuners, switches) intended to be connected to an antenna, based on the declaration of the manufacturer, are covered by the RED.

1.7.4.8. DVB receivers

Radio broadcast receivers are within scope. However, in the specific case of DVB receivers, pure DVB-C and DVB-C(+) receivers which receive the signal via a wired CATV are not covered by the RED. Other DVB receivers (DVB-T(2), DVB-S2-x), DVB-S(2)) or DVB-C receivers with embedded radio functionality (e.g. a TV set with DVB-S, DVB-T, DVB-T(2) and/or WLAN) are covered by the RED and have to fulfil all relevant requirements.

1.7.4.9. Jammers

The legality of devices intended to deliberately disrupt (jammers) has been discussed on several instances in the context of the RED and the EMCD. These discussions have made clear that Member States neither permit nor wish to permit radio communications to be disrupted by jamming devices operated by members of the public. These discussions made it also clear that Member States authorise the use of jammers for reasons of public security, defence, State

²³ Needs to be assessed on a case-by-case basis, in order to determine if a specific type of test equipment is covered (or not covered) by the RED.

security, including the economic well-being of the State in the case of activities pertaining to State security matters, and the activities of the State in the area of criminal law.

It is the common understanding of market surveillance authorities responsible for the EMCD or RED, if exceptionally a jammer falls within the scope of the RED, that jammers intended to be used by the public cannot be deemed to be in compliance with the EMC essential requirements. Such devices cannot therefore be legally placed on the market or made available, within the EU, under any of those Directives.

Member States' market surveillance authorities will take all appropriate measures to prohibit or restrict from being made available on their national market, to withdraw from that market or to recall, under the provisions of the applicable Directive (EMCD or RED), jammers that are intended to be used or used by the public. In such a case, Member States' market surveillance authorities are under an obligation to notify such actions to the other Member States as well as the Commission in case the non-compliance is not restricted to their national territory.

1.7.4.10. Construction kits

Construction kits that when assembled fall within the scope of the Directive and are intended to be made available on the EU market are covered by the RED. The kit manufacturer is responsible for compliance when the kit is assembled in accordance with the instructions. This does not apply to construction kits for Radio amateurs (see 1.7.3.2).

The person who assembles the kits, already placed on the EU market, shall follow the instructions. That person shall be considered as the manufacturer, when makes them available on the EU market, if:

- their intended function or performance is modified; or
- the compliance is impacted because the instructions provided were not followed.

1.7.4.11. Specific components (radio)

The definition of 'radio equipment', in Article 2 of the RED, includes *an electrical or electronic product which must be completed with an accessory, such as antenna, so as to intentionally emit and/or receive radio waves for the purpose of radio communication and/or radio determination.*

The following components meet the above definition; hence they are radio equipment and are covered by the RED:

- RF Modules (Radio Frequency Modules) as well as components that have an embedded RF Module;

- Integrated Circuits²⁴ if they have the capacity to receive or transmit (radio) signals once they are integrated, as such²⁵, into another product.²⁶

When these components (radio equipment) are placed, before their integration into another product, on the EU market, the economic operator who is, or is considered to be, their manufacturer is required to:

- perform an assessment of the risks that can be possibly identified at the stage of placing the above components (radio equipment) on the EU market (i.e. can be possibly identified before their integration into another product); in any case, the intended use and, for safety aspects, reasonably foreseeable use have to be assessed as in Article 17(1) of the RED; and
- provide instructions which, if followed, will ensure that they remain compliant.

This section is without prejudice to any new obligations that might arise when the above components (radio equipment) are integrated into another product.

1.7.4.12. Radio equipment installed in vehicles

Different types of vehicles may include radio equipment, as defined in the RED. The technical scenarios may vary and therefore this section describes the obligations, mainly on risk assessment, for the manufacturer of the vehicle and for the manufacturer of the radio equipment (mainly under the RED), including the situations under which a product, after it has been placed on the EU market, will be considered as a new product ⁽²⁷⁾. The obligations can be cumulative if the same person assumes different roles.

In the context of this section, the term:

- ‘Manufacturer of vehicle radio equipment’ refers to the manufacturer as defined in Article 2 (1) (12) of the RED, the economic operator who is considered to be the manufacturer in accordance with Article 14 of the RED or the person who becomes the manufacturer of the vehicle radio equipment as described in section 1.7.4.12.4 of this Guide.
- ‘Vehicle radio equipment’ refers to radio equipment within the scope of the RED installed or intended to be installed in vehicles; it does not refer to portable devices that are mainly used in any environment, outside the vehicle, even if they can be connected to USB ports or cigarette lighter socket ⁽²⁸⁾;

²⁴ A collection of electronic components such as resistors, transistors, capacitors, etc. constructed on a single semiconductor wafer or chip or a single substrate, in which the components are interconnected to perform a given function.

²⁵ i.e. integrated as standalone.

²⁶ Includes also integrated circuits that need to be completed only with an accessory, e.g. an antenna or software, in order to receive or transmit signals.

⁽²⁷⁾ By taking into account, section 2.1 of the Blue Guide ‘Repairs and modifications to products’ and other guidance EU-DoCuments (such as the RED Guide and the supplementary guidance on the LVD/EMCD/RED).

⁽²⁸⁾ These devices would still fall under the RED scope if they qualify as “radio equipment” as defined in the Directive.

- 'Vehicle' refers, mainly, to a vehicle under Regulation (EU) 2018/858, Regulation (EU) 167/2013 or Regulation (EU) 168/2013;
- 'EU legislation on vehicles' refers, mainly, to Regulation (EU) 2018/858, Regulation (EU) 167/2013 or Regulation (EU) 168/2013.

1.7.4.12.1. Obligations for the manufacturer of vehicle radio equipment

Radio equipment which is intended to be placed on the EU market and intended to be installed in a vehicle

The manufacturer of that radio equipment must fulfil the relevant obligations under the RED.

For that radio equipment, the said manufacturer must:

- carry out a conformity assessment procedure, to the extent possible, ensuring that the compliance of the radio equipment is not compromised when it functions, together with other systems/devices, in the vehicle; and
- ensure that the instructions accompanying the vehicle radio equipment include specific installation instructions.

A manufacturer of vehicle radio equipment which is intended to be placed on the EU market and intended to be installed in a vehicle, shall [as manufacturer of the radio equipment] ensure that the radio equipment, itself, is compliant with the RED ⁽²⁹⁾

Under the RED, the obligations of the manufacturer are specified in Article 10 of the RED. In this respect and without prejudice to the other obligations specified in Article 10 of the RED, the said manufacturers shall:

- perform a risk assessment, which shall be document, based, to the extent possible, on the use of the vehicle radio equipment in a vehicle showing that the vehicle radio equipment, when it is installed in the vehicle and it operates in combination with systems, parts or components of the vehicle (i.e. representative vehicle environment in which the radio equipment is intended to be used) will remain compliant with the RED essential requirements ⁽³⁰⁾; and

In addition, unless the radio equipment is installed before its placing on the EU market, the said manufacturer must ensure that:

- the instructions accompanying the vehicle radio equipment ⁽³¹⁾ include specific installation instructions, in particular describing how any installer

⁽²⁹⁾ With the requirements of the RED applicable at the time of the placing of the radio equipment on the EU market.

⁽³⁰⁾ Those that are applicable when the equipment was placed on the EU market. Non-compliance of radio equipment can also have an impact on the other devices which are in the vehicle.

⁽³¹⁾ Referred to in Article 10 (8) of the RED.

should handle the vehicle radio equipment to ensure that the vehicle radio equipment, when installed and in operation ⁽³²⁾, remains compliant ⁽³³⁾.

Obligations for the manufacturer of the vehicle

Vehicles intended to be placed on the EU market (including radio equipment that has not been previously placed on the EU market and installed in the vehicle)

The manufacturer of that vehicle is also the manufacturer of that installed radio equipment and must fulfil the relevant obligations under RED.

Vehicles intended to be placed on the EU market (including radio equipment that has been previously placed on the EU market and installed in the vehicle)

The manufacturer of that vehicle needs to demonstrate or verify, by documenting, that the compliance of that radio equipment is not compromised when it functions, together with other systems/devices, in the vehicle.

1.7.4.12.2. Deriving from the RED

Vehicles intended to be placed on the EU market (including radio equipment that has not been previously placed on the EU market and installed in the vehicle)

The manufacturer of that vehicle is also the manufacturer of that radio equipment installed in that vehicle.

Under the RED, the obligations of the manufacturer are specified in Article 10 of the RED. In this respect and without prejudice to the other obligations specified in Article 10 of the RED, the said manufacturer shall:

- perform a risk assessment (including additional testing, if necessary), which shall be documented, verifying that the above radio equipment, when it is installed in the vehicle and it operates in combination with systems, parts or components of the vehicle, is compliant with the RED essential requirements ⁽³⁴⁾.

Vehicles intended to be placed on the EU market (radio equipment that has been previously placed on the EU market and installed in the vehicle)

The manufacturer of that vehicle needs to demonstrate or verify, by documenting, that the compliance of that radio equipment is not compromised ⁽³⁵⁾ when it functions, together with other systems/devices, in the vehicle. A risk assessment is the preferable option to carry out this activity.

⁽³²⁾ i.e. when it operates in combination with systems, parts and components of the vehicle (i.e. representative vehicle environment) as defined by the radio equipment manufacturer in the risk assessment of the radio equipment.

⁽³³⁾ With the requirements applicable when the equipment was placed on the EU market.

⁽³⁴⁾ Those that are applicable when the vehicle is placed on the EU market.

⁽³⁵⁾ The requirements that were applicable when the radio equipment was placed on the EU market.

In the case where the compliance is compromised, then the radio equipment in question is deemed to be a new product ⁽³⁶⁾.

1.7.4.12.3. Deriving from the EU legislation on vehicles

The manufacturer of the vehicle must analyse on a case-by-case basis the requirements established in the RED, because some of the requirements might overlap with or be related to the EU legislation on vehicles. In this case of overlap, preference should be given to the more specific EU harmonisation legislation ⁽³⁷⁾.

In this respect, such specificities should be taken into consideration by the manufacturer of the vehicle when performing the risk assessment carried out under the RED. But in any case, the compliance with the requirements of the RED not covered by the EU legislation on vehicles must be verified by the manufacturer of the vehicle.

Electromagnetic Compatibility (UNECE REGULATION 10)

UNECE Regulation 10 ⁽³⁸⁾ is in force in the EU via the EU legislation on vehicles ⁽³⁹⁾. For the aspects of the RED that relate to electromagnetic compatibility, UNECE Regulation 10 (including its paragraph 3.2.8) can be considered as more specific.

The EU legislation on vehicles does not apply to vehicle radio equipment that falls within paragraph 3.2.9 of UNECE Regulation 10. For such equipment, the EU declaration of conformity (DoC) must show that there is respect of the limits in paragraph 3.2.9 of UNECE Regulation 10. See also article 3.1.8 :

For vehicles of categories M, N, and O the vehicle manufacturer must provide a statement of frequency bands, power levels, antenna positions and installation provisions for the installation of radio frequency transmitters (RF-transmitters), even if the vehicle is not equipped with an RF transmitter at time of type approval. This should cover all mobile radio services normally used in vehicles. This information must be made publicly available following the type approval. Vehicle manufacturers must provide evidence that vehicle performance is not adversely affected by such transmitter installations.

1.7.4.12.4. Radio equipment that is already placed on the EU market but needs to be considered as new product

A radio equipment device already placed on the EU market and intended to be installed in a vehicle will be considered as a new product if the compliance of the radio equipment with the RED essential requirements ⁽⁴⁰⁾ is impacted.

The compliance of a vehicle radio equipment with the RED essential requirements might be impacted if, for example, (i) the relevant instructions that

⁽³⁶⁾ In this case, the manufacturer of the vehicle is also the manufacturer of that installed radio equipment.

⁽³⁷⁾ See section 2.7 of the Blue Guide.

⁽³⁸⁾ ‘Uniform provisions concerning the approval of vehicles with regard to electromagnetic compatibility’ (its text is published in OJ L 41, 17.2.2017, p. 1)

⁽³⁹⁾ Regulation (EU) 2018/858; Commission Delegated Regulation (EU) 2015/208, supplementing Regulation (EU) No 167/2013; and Commission Delegated Regulation (EU) No 44/2014, supplementing Regulation (EU) No 168/2013.

⁽⁴⁰⁾ Those that were applicable when the radio equipment was placed on the EU market.

have been provided by the original manufacturer of the radio equipment are not followed or (ii) the original performance, purpose or type of the radio equipment is modified to such an extent that the compliance is impacted or (iii) vehicle radio equipment is installed in environment in which it is not intended to be used.

RED will re-apply ⁽⁴¹⁾ to such a (new) product (radio equipment) if it is, then, first made available in the EU (e.g. supplied in order to be installed in a vehicle by any other person; or installed, for a client, in a vehicle). It means that the person who intends to first make available in the EU such a new product (radio equipment) will be regarded as the manufacturer and will need to follow the obligations of the manufacturer of the new radio equipment, depending on the scenario, as described above.

1.7.4.12.5. EU Declaration of conformity, CE marking and other information under RED – Vehicle radio equipment

The EU declaration of conformity, CE marking, contact details and other information required by the RED shall be in relation to the vehicle radio equipment (whether installed or not in the vehicle⁴²).

Under the RED, it is required that the CE marking, and the pictogram or statement required by Article 10 (10) of the RED, are affixed on the packaging (the CE marking shall also be affixed on the radio equipment unless it is not possible). Given that the RED does not specifically foresee the situation where the equipment is made available without packaging ⁽⁴³⁾, it can be considered good and acceptable practice if the CE marking, and the pictogram/statement required by the first sentence of Article 10 (10) of the RED, are provided as separate label (s) or in document (s) accompanying the vehicle.

1.7.4.13. Fixed Installations

Fixed installations are not regulated under the RED. Since it is relevant in certain cases (through the link to the EMCD in Article 3.1.b), a distinction is made between two types of installations that are fixed. These are described below:

- Fixed installations as defined and described in the EMCD, i.e., which are unique in their build-up;
- Installations built up of mass-market equipment but are fixed in the sense that they are permanent in their place.

Fixed installations as defined and described in the EMCD, i.e., which are unique in their build-up

In the EMCD, special regulations for fixed installations and apparatus intended for incorporation in fixed installations are foreseen. As defined in Article 3.1 of the EMCD, fixed installation is defined as "a particular combination of several types of apparatus and, where applicable, other devices, which are assembled, installed and intended to be used permanently at a predefined location. An "apparatus" by definition of the EMCD means any finished appliance of

⁽⁴¹⁾ The requirements applicable at the time the product will be first made available in the EU.

⁴² [See 3.1.8 of the UNECE Regulation 10](#)

⁽⁴³⁾ For example, when the equipment is installed in a vehicle, it is then made available without packaging.

combination thereof. For the purposes of market surveillance, fixed installations are thus fully covered by the EMCD.

Putting into service of radio equipment may include incorporation of radio equipment into a fixed installation. In the RED, the concept of fixed installations is not explicitly defined. However, the RED requires in Article 3.1.b that “an adequate level of electromagnetic compatibility as set out in Directive 2014/30/EU” has to be ensured. With this, not only the relevant requirements of Annex I of the EMC Directive but also all the other regulations of the EMC Directive which apply to the EMC level are relevant. This applies, in particular, to the special requirements and procedures according to Article 19.1 and Annex I (2) of the EMCD for fixed installations.

Therefore, the conformity assessment of radio equipment shall also take into account the circumstances, where radio equipment is designed for or may be used as a part of "apparatus" or "fixed installation". It is important to ensure the effective and efficient use of radio spectrum and avoidance of harmful interference are not compromised under any intended operating condition. The technical Documentation accompanying radio equipment shall specify the fixed installation concerned and the precautions to be taken. A legal or private person, who is responsible for putting into service or use of radio equipment, also has to ensure that radio equipment is properly installed, maintained, and used for its intended purpose.

Installations built up of mass-market equipment but are fixed in the sense that they are permanent in their place

Regarding radio equipment intended for inclusion in non-specific installations, Article 17.1 of the RED requires that “conformity assessment shall take into account all intended operating conditions and, for the essential requirement set out in Article 3.1.a, the assessment shall also take into account the reasonably foreseeable conditions of use. Where applicable these conditions may, when putting radio equipment into service, include combining the radio equipment with other equipment to form an installation that is fixed at its location.

Considering the types of equipment that are likely to be included in such installations, the installation instructions of the radio equipment should describe how to install the equipment to enable it to operate as foreseen and if needed, what type of components shall be used. It is then for the legal or private person, who is responsible for putting into service or use of radio equipment, to ensure that radio equipment is properly installed, maintained, and used for its intended purpose.

An installer who is a professional acting for a client shall undertake all the responsibilities of the manufacturer not only when the radio equipment has not been previously placed on the EU market but also when the compliance with the RED essential requirements ⁽⁴⁴⁾ of the radio equipment already placed on the EU market, is impacted.

⁽⁴⁴⁾ Those that were applicable when the radio equipment was placed on the EU market.

The compliance of a radio equipment, already placed on the EU market, with the RED essential requirements might be impacted if, for example, (i) the relevant instructions that have been provided by the original manufacturer of the radio equipment are not followed or (ii) the original performance, purpose or type of the radio equipment is modified to such an extent that the compliance is impacted.

1.7.4.14. Power plugs attached to radio equipment

The safety of domestic power plugs attached to radio equipment (for example to a laptop or television) is governed by the GPSR. Thus Member States may apply their national safety regulations or standards on plugs, even if they are attached to radio equipment.

1.7.4.15. RFID TAG

TAG are radio equipment within the scope of RED and the manufacturer of the TAG is responsible for compliance.

Due to the nature or size of TAGs, CE marking, contact details and other required information may not be affixed on the TAG.

Non-radio products (e.g. passports, credit cards, ring for contactless payment, ...) which are tagged, other than the TAG itself (as clarified above), are not radio equipment and do not require CE marking and contact details for the purposes of the RED.

1.7.4.16. Cabling and wiring

Cabling and wiring are not covered by the RED because they fall out of the scope of the definition of radio equipment.

1.7.4.17. Software Defined Radio (SDR)

SDR either as consumer equipment or as a development tool is covered by the RED.

The manufacturer should provide sufficient information on the intended use of the radio equipment so as to allow its use in compliance with the essential requirements.

Such information may need to include a description of accessories such as antennas and of components such as software, and specifications of the installation process of the radio equipment.

SDR manufacturers have to take special care for the compliance with article 10.8 & 10.10 & point 8 of Annex VI RED.

2. OBLIGATIONS OF THE ECONOMIC OPERATORS

2.1. General

Union harmonisation legislation defines the manufacturer, the authorised representative, the importer, the fulfilment service provider and the distributor as 'economic operators'. The main responsibility is put on the manufacturer. The other operators have their obligations build on those of the manufacturer. Therefore, this section firstly describes these economic operators and then concentrates on the specific obligations of the manufacturer.

Before placing radio equipment on the EU market, economic operators shall ensure that the appropriate conformity assessment procedure has been carried out by the manufacturer. They shall ensure that the radio equipment manufacturer has drawn up the EU-DoC and the radio equipment is accompanied by instructions and safety information and bears the CE marking, see sections 2.3 to 2.5.

Whether an economic operator places radio equipment on the EU market under his own name or trademark or modifies radio equipment already placed on the EU market in such a way that compliance with this Directive is impacted, the economic operator has to take over the obligations as the manufacturer of the RE.

Regulation (EU) 2019/1020⁴⁵ requires in its Article 4 that there must be an economic operator established in the EU (manufacturer, importer, authorized representative, or fulfilment service provider) shall provide information to market surveillance authorities and cooperate with them.

2.2. The economic operator referred to in Article 4 of Regulation (EU) 2019/1020

Four types of economic operator can act as the economic operator responsible for the compliance:

- i) a manufacturer established in the EU;
- ii) an importer (by definition established in the EU), where the manufacturer is not established in the EU;
- iii) an authorised representative (by definition established in the EU) who has a written mandate from the manufacturer designating the authorised representative to perform the tasks set out in Article 4(3) on behalf of the manufacturer; or
- iv) a fulfilment service provider established in the Union where there is no manufacturer, importer or authorised representative established in the EU.

⁴⁵ Regulation (EU) 2019/1020 of the European Parliament and of the Council of 20 June 2019 on market surveillance and compliance of products and amending Directive 2004/42/EC and Regulations (EC) No 765/2008 and (EU) No 305/2011

2.3. Manufacturer

The RED defines in Article 10 a set of requirements to be met by manufacturers in order to place radio equipment on the EU market:

- a) Ensure radio equipment is designed and manufactured in accordance with the applicable essential requirements in Article 3 of the RED (see section 2.8.a)
- b) Carry out conformity assessment procedures (see Section 2.8.b)
- c) Ensure that the equipment can operate in at least one Member State (see section 2.8.c)
- d) Draw up technical Documentation according to Article 21 (see section 2.8.d)
- e) Draw up a EU-DoC / simplified EU-DoC which shall accompany the product (see section 2.8.e)
- f) Affix CE marking and notified body number if applicable (see section 2.8.f)
- g) Add type or batch or serial number or other element to the equipment allowing its identification (see section 2.8.g)
- h) Add traceability information to the equipment (address, etc...) (see section 2.8.h)
- i) Add geographical information in case of restrictions (see section 2.8.i)
- j) Ensure that the equipment is accompanied by instructions and safety information including, where applicable, a description of accessories and components, including software, which allow the radio equipment to operate as intended (the manufacturer is the only economic operator that can define the intended use of his radio equipment, no other economic operator may change the intended use). These instructions shall also include information about the frequency bands, power used by the radio equipment and where applicable information on the specifications relating to the radio equipment's charging capabilities and the compatible charging devices (see section 2.8. j).
- k) Ensure that series of production remain in conformity with the Directive (see section 2.8.k)
- l) When deemed appropriate, carry out sample testing of radio equipment made available on the EU market, investigate, and, if necessary, keep a register of complaints, of non-conforming radio equipment and radio equipment recalls, and shall keep distributors informed of any such monitoring. (see section 2.8.l)
- m) Take immediate actions in case of non-compliance of products already placed on the EU market. (see section 2.8.m)
- n) Cooperate with competent national authorities. (see section 2.8.n)

Further obligations and details can be found in Chapter 3.1 of the Blue Guide.

2.4. Authorised representative

A manufacturer may, by a written mandate, appoint an authorised representative established in the EU to carry out some of his responsibilities on his behalf. Article 11 of the RED describes the requirements to be met by the authorised representative.

The RED does not prevent the manufacturer from designating more than one authorised representative, however all authorized representatives designated by the manufacturer to act on the manufacturer's behalf shall meet the provisions of Article 11 RED and the mandate must cover as a minimum the tasks specified in point 2 of that Article.

The tasks for each authorised representative must be clearly specified in the mandate (the task can be allocated for example on the basis of the place, Member State, where each authorised representative is established or the basis of different tasks that stem from the same Union act or from different Union acts applicable to the product in question).

Tasks that cannot be allocated to several persons and the Union legislation requires, explicitly or impliedly, to be carried out by a single person (example signing the EU-DoC or being the responsible economic operator under Article 4 of Regulation 2019/1020), shall be allocated to a single authorised representative.

The manufacturer obligations described in sections 2.8.a), 2.8.b) and 2.8.d) of this Guide shall not be part of the authorised representative's mandate.

The authorised representative's mandate shall at least contain the following:

- Keep the EU-DoC and the TD at the disposal of national market surveillance authorities for 10 years after the radio equipment has been placed on the EU market;
- Manufacturer obligations described in section 2.8.n);
- Cooperate with competent national authorities. (see section 2.8.n).

The minimum set of tasks that the mandate should specify under the RED is insufficient to comply with article 4 (EU) 2019/1020 to fulfill the requirement to have a economic operator established in the Union.

Further obligations and details can be found in Chapter 3.2 of the Blue Guide.

2.5. Importer

According to Article 12 of the RED, the importer shall:

- a) ensure that he is only placing compliant radio equipment on the EU market,
- b) ensure that the manufacturer has:
 - i. carried out conformity assessment procedures (see section 2.8.b),

- ii. ensured that his equipment can operate in at least one Member State (see section 2.8.c),
 - iii. drawn up the Technical Documentation (section 2.8.d),
 - iv. affixed the CE mark (section 2.8.f)),
 - v. ensured that the equipment is accompanied by instructions and safety information (Section 2.8.j),
 - vi. drawn up a EU-DoC / simplified EU-DoC which should accompany the product (Section 2.8.e),
 - vii. added geographical information in case of restrictions (Section 2.8.i),
 - viii. added a type, batch or serial number or other element to the equipment allowing its identification (Section 2.8.g),
 - ix. added traceability information to the equipment (Section 2.8.h),
- c) not place a radio equipment on the EU market if he considers or has reason to believe that radio equipment is not in conformity with the essential requirements set out in Article 3. If the radio equipment presents a risk, the importer shall inform the manufacturer and the market surveillance authorities to that effect.
- d) add additional traceability information to the equipment (their name, address, etc...)
- e) ensure that, while radio equipment is under their responsibility, its storage or transport conditions do not jeopardize its compliance with the essential requirements set out in Article 3.
- f) when deemed appropriate, carry out sample testing of radio equipment made available on the EU market, investigate, and, if necessary, keep a register of complaints, of non-conforming radio equipment and radio equipment recalls, and shall keep distributors informed of any such monitoring
- g) take immediate actions in case of non-compliance of products already placed on the EU market
- h) for a period of 10 years after the radio equipment has been placed on the EU market, keep a copy of the EU EU-DoC at the disposal of the market surveillance authorities and ensure that the TD can be made available to those authorities, upon request⁴⁶. The importer is advised to require formal assurance in writing from the manufacturer that the document will be made available when requested by the surveillance authority⁴⁷.
- i) cooperate with competent national authorities

⁴⁶ According to the Blue Guide footnote 128, there is not an obligation for the importer to hold a copy of the TD and there is not an obligation for the manufacturer to supply the TD to the importer.

⁴⁷ The Blue Guide, in footnote 125, states: In light of these obligations, it is generally considered good practice for importers to: refer to the applicable EU legislation in the contract with his supplier (mentioning the obligations of manufacturers under Union law); ensure that he has access to the technical documentation, or ensure that the manufacturer has signed an obligation to provide the technical document if requested by market surveillance authorities.

- j) When making the radio equipment covered by the common charging interface requirements available to consumers and other end-users, importers shall ensure that:
 - i. radio equipment that has to be equipped with the common charging interface USB-C is accompanied by the according user information (Section 2.6.o)
 - ii. if consumers and other end-users have the possibility to acquire radio equipment that has to be equipped with the common charging interface USB-C together with a charging device, the consumers and other end-users shall have the possibility of acquiring that radio equipment without any charging device.

Further obligations and details can be found in Chapter 3.3 of the Blue Guide.

2.6. Fulfilment service provider

This term is not included in the RED, however it is used for the purposes of the tasks specified in Article 4 of Regulation (EU) 2019/1020 on market surveillance and compliance of products.

Fulfilment service providers are any natural or legal person located in the EU offering, in the course of a commercial activity, at least two of the following services: warehousing, packaging, addressing and dispatching, without having ownership of the products involved.

Where the manufacturer is not established in the EU and there is neither an importer nor an authorised representative, the traceability information of the fulfilment service provider (if he exists) shall be indicated on the product or on its packaging, the parcel or an accompanying document.

Further obligations and details can be found in Chapter 3.5 of the Blue Guide.

2.7. Distributor

According to Article 13 of the RED, the distributor shall:

- a) act with due care in relation to the requirements of this Directive when making radio equipment available on the EU market,
- b) verify that:
 - i. radio equipment bears the CE mark (Section 2.8.f),
 - ii. radio equipment is accompanied by instructions as well as safety instructions (Section 2.8.j),
 - iii. the manufacturer has ensured that his equipment can operate in at least one Member State (see Section 2.8.c),
 - iv. the manufacturer has added a type, batch or serial number or other element to the equipment allowing its identification (Section 2.8.g),
 - v. the manufacturer has added traceability information to the equipment (Section 2.8.h),

- vi. the manufacturer has drawn up an EU-DoC/ simplified EU-DoC which shall accompany the product (Section 2.8.e),
 - vii. the manufacturer has added geographical information in case of restrictions (Section 2.8.i),
 - viii. the importer (if he exists) has added traceability information to the equipment (Section 2.5.d),
 - ix. the fulfilment service provider has added his traceability information (his name, address, etc...) to the equipment, or on its packaging, the parcel or an accompanying document;
- c) not make radio equipment available on the EU market if he considers or has reason to believe that radio equipment is not in conformity with the essential requirements set out in Article 3. If the radio equipment presents a risk, the distributor shall inform the manufacturer or the importer and the market surveillance authorities to that effect.
 - d) ensure that, while radio equipment is under their responsibility, its storage or transport conditions do not jeopardize its compliance with the essential requirements set out in Article 3.
 - e) take immediate actions in case of non-compliance of products already placed on the EU market
 - f) cooperate with national competent authorities.
 - g) if consumers and other end-users have the possibility to acquire radio equipment that has to be equipped with the common charging interface USB-C together with a charging device, the consumers and other end-users shall have the possibility of acquiring that radio equipment without any charging device.

Further obligations and details can be found in Chapter 3.4 of the Blue Guide.

2.8. Description of the manufacturer's responsibilities

a) Ensure radio equipment design and manufacture in accordance with the essential requirements of the RED

The manufacturer is responsible for designing and manufacturing the product in accordance with essential requirements as set out in Article 3 of the RED.

b) Conformity assessment procedures (CAP)

Article 17 of the RED describes the applicability of each conformity assessment procedure (Annex II, III or IV) with a view to meet the essential requirements set out in Article 3. Manufacturers are free to choose whether or not to apply harmonised standards whose references are published in the Official Journal of the European Union (OJEU) under the RED⁴⁸, however doing so impacts the CAP.

⁴⁸ If manufacturers apply such harmonised standards they can benefit from the presumption of conformity with the corresponding essential requirements.

For the essential requirements set out in Article 3 of the RED, Article 17 of the RED provides that conformity shall be demonstrated by using Module A (Annex II of the RED), Module B+C (Annex III of the RED) or Module H (Annex IV of the RED). However, with respect to the requirements set out in Articles 3.2 and 3.3 of the RED, Module B+C (Annex III of the RED) or Module H (Annex IV of the RED) shall be used, if harmonised standards are partially applied or not applied or do not exist.

Hence, for the essential requirements set out in Article 3.1.a, 3.1.b and 3.4 of the RED, the possibility to demonstrate conformity with these essential requirements by means other than using the harmonised standards is not linked to the involvement of a notified body, because the manufacturer has always the discretion to use Module A (Annex II of the RED) which does not involve a notified body.

With respect to the requirements set out in Articles 3.2 and 3.3 of the RED, a conformity assessment involving a notified body shall be used, if such harmonised standards are partially applied or not applied or do not exist, because Module B+C (Annex III of the RED) and Module H (Annex IV of the RED) involve a notified body.

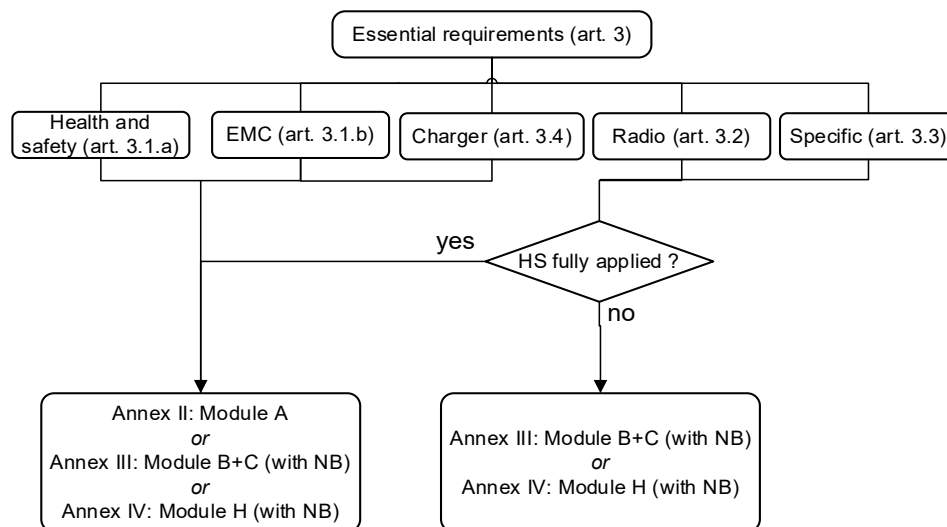


Figure 1: Overview of the different conformity assessment procedures

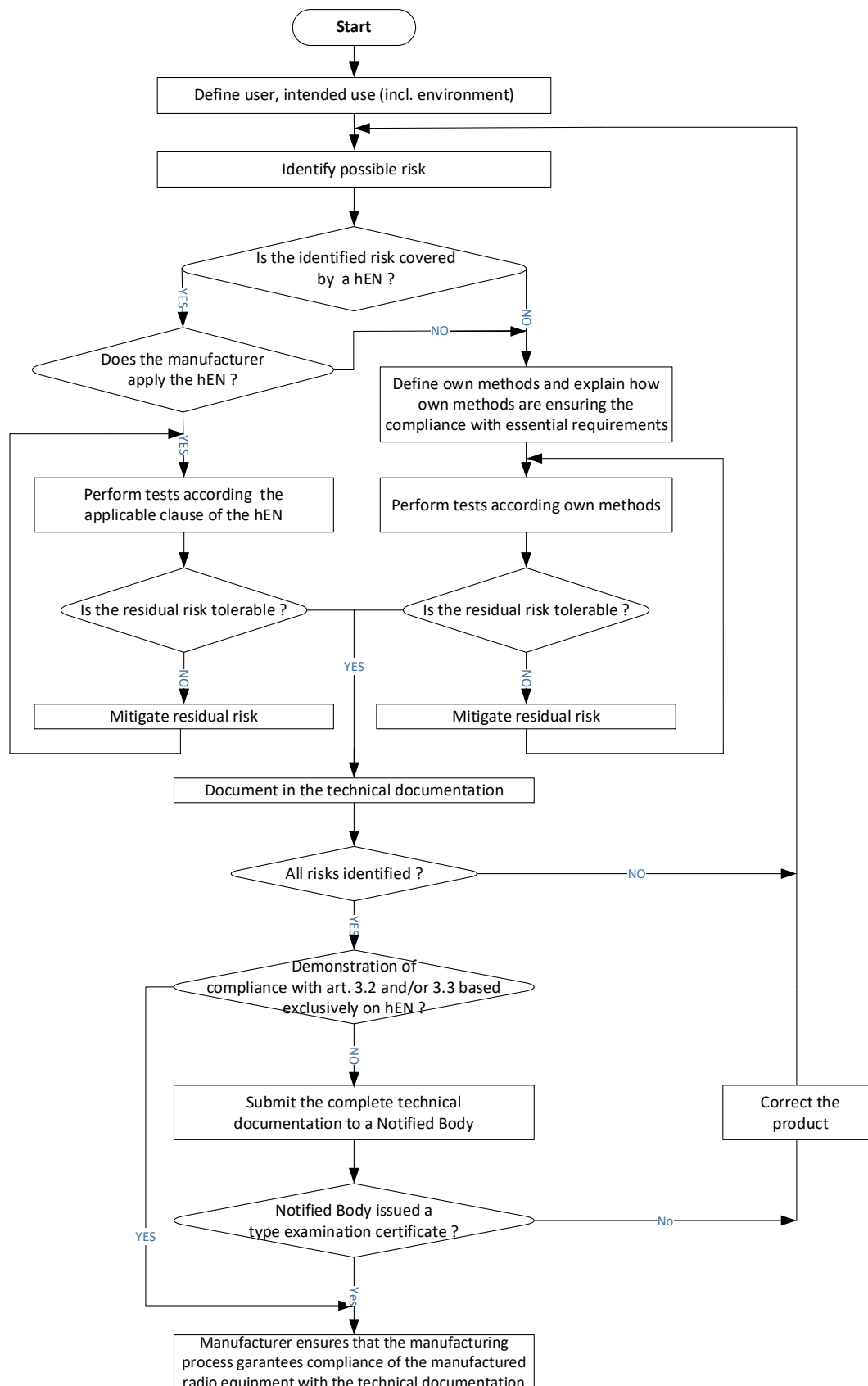


Figure 2: Flowchart risk assessment

Under the Modules mentioned above, an assessment needs to be carried out to ensure that radio equipment complies with the essential requirements set out in Article 3 of the RED (that includes an assessment of the risks and aspects

covered by Article 3). Based on the wording of Article 21 and Annex V of the RED, this assessment (whether Module A, B+C or H has been followed) shall be included in the technical documentation.

If the conformity assessment procedures require the manufacturer to perform tests, the manufacturer may seek the assistance of a third party (e.g. laboratory), but the manufacturer remains responsible in all cases for the conformity of the radio equipment.

In its conformity assessment, the manufacturer has to “take into account all intended operating conditions” (Article 17 RED). This refers to intended operating conditions that may alter the product behavior with respect to the conformity of the product with the essential requirements. For Article 3.1(a) the assessment shall also take into account the reasonably foreseeable conditions of use.

Where the radio equipment is capable of taking different configurations, the conformity assessment shall confirm whether the radio equipment meets the essential requirements set out in Article 3 in all possible configurations.

Where the radio equipment is of multimode nature, the conformity assessment is limited to the modes that may legally be operated in EU/EEA/EFTA countries. [footnote on multimode]

The manufacturer shall ensure that the radio equipment placed on the EU market is in conformity. In carrying out this assessment, he may use assessments performed previously for components or parts of that radio equipment, while remaining responsible for the conformity of the whole product. The reused assessment of the components or parts may not be sufficient to demonstrate conformity of the whole radio equipment.

If assessments performed previously for components or parts are used, these assessments shall be included in its technical documentation. It must be possible to make the technical Documentation available to the market surveillance authorities within the Union. However, there is no obligation to keep it inside the Union. The requirement for making this technical Documentation available does not mean that the person who bears this responsibility has to store it himself, as long as he is capable of presenting it on request from the national authorities. (see Chapter 7.2 of the Blue Guide).

If the state of the art has changed (e.g. when the applicable hEN has been revised), the manufacturer shall reassess the compliance of his radio product taking in account the changes in the state of the art. Reassessing the compliance doesn't mean to redo all the tests. The manufacturer has to review the risk assessment and determine the impact on his conformity assessment procedure. The result of analysis has to be included in the technical Documentation.

c) Equipment can operate in at least one Member State

In addition to the essential requirements, in order to place the equipment on the EU market Article 10.2 of the RED requires manufacturers to ensure that radio equipment can be operated in at least one Member State without infringing

applicable requirements on the use of radio spectrum⁴⁹. This does not imply that it is possible to put the equipment into service or operate it in all Member States.

The requirements on the use of radio spectrum are specified by spectrum management authorities in each EU Member State and reflected in their national frequency allocation plan. Therefore, manufacturers need to check the applicable requirements on the use of the radio spectrum in all EU countries. If restrictions for the use of the equipment are applicable, the necessary information shall be provided with the equipment according to Article 10.10 of the RED. Contact details of EU spectrum management authorities can be found here under “Contact points”:

https://single-market-economy.ec.europa.eu/sectors/electrical-and-electronic-engineering-industries-eei/radio-equipment-directive-red_en

It is noted that, Member States are required, through Article 8 of the RED, to notify radio interfaces which they intend to regulate. This information provides guidance to the manufacturer regarding national spectrum plans and restrictions.

The European Communications Office (ECO) maintains a Frequency Information System (EFIS) where information regarding spectrum use in Europe is made available. This system is accessible here: <https://efis.cept.org/>⁵⁰. According to recital 24, Member states are to use the Frequency Information System (EFIS) of the European Communications Office (ECO) in order to make comparable information regarding the use of radio spectrum in each Member State available to the public via the internet.

d) Technical Documentation

Article 10.3 requires the manufacturer to draw up the Technical Documentation (TD) before placing radio equipment on the EU market. Specific requirements for the TD are contained in Article 21 of the RED.

TD should reflect the whole history of the product and contain all EU-DoC's, test reports, risk assessment that have been updated and not only the latest version.

The general principles of the TD are specified in Chapter 4.3 of the Blue Guide, this is reflected in Annex V of the RED. There are some elements in Annex V that are only requested by RED:

- General description of the product including:
- photographs or illustrations showing external features, marking and internal layout
- version of software or firmware affecting compliance with essential requirements: the manufacturer has to provide this information only if the

⁴⁹ It may be the case that a given frequency band is not regulated in any Member State (i.e. not part of any national frequency plan within the EU). In these cases, and according to Article 7 of the Directive, a radio equipment operating in that frequency band can be placed on the market throughout the Union unless all Member States have introduced national restrictions, and can be operated in Member States that have not introduced such national restrictions.

⁵⁰ EFIS is maintained by ECO and Member States have to update their national information at least twice a year.

software or firmware has an influence on the conformity of the radio equipment (such as a change of software that would allow operation in a different frequency range or at higher output power). The manufacturer has the responsibility to assess the compliance of the radio equipment, in combination with the embedded software, with the RED. Such assessment shall be properly reflected in the TD.

- the manufacturer shall include the user information and installation instructions referred to in Article 10.8 of the RED.
- Solutions adopted to meet the essential requirements

The technical conformity of radio equipment must be ensured in accordance with Article 17 of the RED (see Section 2.8 b). The manufacturer may apply harmonised standards listed in the OJEU, which provide presumption of conformity to an essential requirement, or apply any other means to demonstrate compliance with the applicable essential requirement(s). In that case, the manufacturer must include a list of relevant technical specifications applied, and an explanation on how the compliance is reached without (or with partial) application of harmonised standard listed in the OJEU. This way of demonstrating compliance is applicable to all essential requirements, including Articles 3.1(a), 3.1(b) and 3.4.

If the manufacturer referred in the EU-DoC to an hEN with delta's because the TD does not contain a test report based on this hEN but an older version and an analysis of the delta's between the old and new version of the hEN then these delta's have to be explained/documented and the test results have to be added in the TD. If a delta for article 3.2 & 3.3 can be considered as a deviation from the hEN (e.g. different test setup) then a Notified body has to be involved.

If the manufacturer applies a standard that has not been listed in the OJEU for one of the essential requirements, the manufacturer needs to motivate clearly why the radio equipment fulfills applicable essential requirement and why this particular standard can be used for the radio equipment in question.

If the manufacturer has not used a harmonised standard applicable to the radio equipment, then the manufacturer needs to document why the radio equipment still complies with the essential requirement(s) of the RED. The manufacturer has to document for example the test result and explain the alternative test setup.

Compliance with article 3.4 can only be achieved when the manufacturer apply the technical specification detailed in the applicable Commission delegated regulation. The test results of the compliance with that technical specification should be documented.

- If applicable, a copy of the EU-type examination certificate and its annexes as delivered by the notified body involved⁵¹;
- If the manufacturer has applied the conformity assessment procedure according to Annex III of the RED, then he has to include “a copy of the EU-type examination certificate and its annexes as delivered by the notified body involved.
- copy of the EU-declaration of conformity
- a copy of the EU- declaration of conformity has to be included in the TD;
- Explanation of the compliance with the requirement of Article 10(2) and of the inclusion or not of information on the packaging in accordance with Article 10(10):
- The manufacturer has to provide an explanation (such as a statement accompanied by detailed information on the EU/EEA/EFTA countries where the radio equipment may be legally operated and the according NRI [National Radio Interface] declaring that his radio equipment has been constructed so that it can operate in at least one Member State (Article 10.2). Furthermore, he has to provide an explanation about the inclusion of information on potential restrictions of use for the putting into service of the radio equipment (Article 10.10). This could be for example a statement declaring that there are no restrictions of use. In cases where there are restrictions, such statement could for example point to the geographical information provided on the packaging and in the instruction manual.

The manufacturer has to include “an adequate analysis and assessment of the risk(s)” in the TD independently of the CAP applied. Chapter 4.3 of the Blue Guide provides clarification on how such assessment shall be documented.

According Article 21.4 of the RED, in cases where the TD does not comply with the requirements above and consequently fails to provide sufficient relevant data or means used to ensure compliance of radio equipment with the essential requirements of the RED, a market surveillance authority may ask the manufacturer or the importer to have a test performed by a body acceptable to that authority at the expense of the manufacturer or importer in order to verify compliance with the essential requirements of the RED.

According Ar. 25 Regulation (EU) 2025/2509 (Toys Regulation), the safety assessment of toys incorporating radio equipment shall take account of the particular vulnerabilities of children in relation to the use of such toys as intended, when assessing and addressing the hazards that the toy may present.

e) EU Declaration of conformity (EU-DoC)

The general principles of the EU-DoC are set out in the "Blue Guide" (Section 4.4). The following explanations mainly concern specific obligations under the RED.

⁵¹ https://single-market-economy.ec.europa.eu/sectors/electrical-and-electronic-engineering-industries-eei/radio-equipment-directive-red_en

According to Article 10.3 of the RED the manufacturer is required to issue a EU-DoC where compliance of radio equipment with the applicable requirements of the RED has been demonstrated.

The EU-DoC has to be kept by the manufacturer for 10 years as of the date that the radio equipment was placed on the EU market (to be understood as the last unit of the product model placed on the EU market).

Annex VI of the RED defines the content and the model structure of the EU-DoC. The RED requires under point 8 of this annex to list accessories and components including software which allow the radio equipment to operate as intended. Manufacturers only have to describe those accessories and components including software if they:

- (1) have an influence on the conformity of the radio equipment, and
- (2) are intended to be installed or changed by the user without the control of the manufacturer.

In those particular cases, the manufacturer can decide the format and the level of description of those pieces of accessories and components including software as long as they can be identified.

Accessories example:

- If the radio equipment is delivered without an antenna, then the technical features of the antenna that may be used in conjunction with the radio equipment shall be provided to the user. The user is responsible to operate the radio equipment and the accessories as intended and according to the description provided by the manufacturer.

These technical features of the accessories shall therefore be mentioned in the EU-DoC in order to enable the user to operate a compliant radio equipment. This information could be the generic characteristics of a given antenna type or a reference to a specific antenna(s) available on the EU market.

Software example:

- If the radio equipment has software (such as firmware, PC controlling software) that can affect its compliance with the Directive and the manufacturer intends and offers the possibility to the user to freely change it or modify it, then the software shall be named in the EU-DoC so that it is possible for the user to put a compliant radio equipment into operation. The manufacturer can decide the format of the description of this software as long as it can be identified.

On the other hand, if the radio equipment has software that cannot affect its compliance with the Directive, even when the software is modified or replaced, then no information has to be provided in the EU-DoC.

Manufacturers shall not confuse the EU-DoC with other documents as e.g. conformity certificates from an (accredited) test lab, notified body certificate.

These documents may be easily distinguished: the EU-DoC is signed by the manufacturer or on his behalf by the authorised representative, while the other documents are signed by the test lab or notified body. A EU-DoC shall be only signed by the manufacturer or his authorized representative. The other economic operators cannot sign it because only the manufacturer may ensure the compliance of the product with the essential requirements.

The designation of the radio equipment, in the EU-DoC, has to permit a link between the product, the complete EU-DoC and the technical documentation.

Accompany each radio equipment

A copy of the EU-DoC or a simplified declaration of conformity has to accompany each radio equipment (i.e. at least one of them shall be in printed form). Without prejudice to other specific Union harmonisation which includes the same requirement, the RED does not prohibit the display of the EU-DoC or the simplified EU-DoC, when it accompanies the radio equipment, in such locations as the operating manual, a separate sheet, printed on the radio equipment, or on the packaging.

From 1st January 2026, the EU-DoC has not to accompany the toy incorporating a radio equipment when the manufacturer has created a digital product passport according articles 19 and 20 of the Regulation (EU) 2025/2509⁵²

Simplified EU-DoC

The wording of the simplified EU-DoC can be found in Annex VII of the Directive. Some deviation of the wording may be accepted as long as the meaning does not change, as the type designation would be indicated at the top of the page where the simplified EU-DoC text is printed and that the text would refer to it.

The simplified EU-DoC shall indicate the web-address where the complete EU-DoC can be found. This web-address does not necessarily need to directly refer to the document but can lead to a specific Internet address (URL) where the EU-DoC's are maintained by the manufacturer enabling a simple identification or search for the relevant EU-DoC. Even if the simplified EU-DoC refers only to RED, the complete EU-DoC⁵³ located on Internet has to refer to all applicable legislation to the radio equipment.

It shall be clarified that the EU-DoC is associated to a product whose conformity has been assessed. If there is a modification of this assessment (due to a new version of the standards or whatever reason), a new EU-DoC has to be issued for the new units of the product. Both of them have to be available online if the manufacturer decides to use the simplified EU-DoC.

The RED prescribes that the description of the intervention of a notified body has to be written in the EU-DoC in its complete form. This means that if a NB has

⁵² Regulation (EU) 2025/2509 of the European Parliament and of the Council of 26 November 2025 on the safety of toys and repealing Directive 2009/48/EC

⁵³ Recital 42 of the RED indicates that the complete EU-DoC(single EU-DoC) may be a dossier containing all relevant individual Declarations of conformity.

been involved, the full name of conformity assessment procedure or the module number or the related Annex and the aspects covered shall be specified by referring for example to the related provision.

For maximum common understanding using references as published by the European Commission in the OJEU is highly recommended.

E.g. CENELEC publishes amendments/corrigenda always as separate documents and never uses «+» in its standard references.

When «+» is used (like CEN) it indicates that there is a consolidated edition which includes also the relevant amendment in a single document.

The formatting is available from the OJEU or from the «summary lists» made available on the website of the European Commission: https://single-market-economy.ec.europa.eu/single-market/european-standards/harmonised-standards/radio-equipment_en

f) CE marking

The CE marking can take different forms (e.g. colour, solid/hollow) as long as it remains visible, legible and respects the required proportions. Moreover, the RED does not limit the CE marking to physical formats. The CE marking shall be subject to the general principles set out in the "Blue Guide" Chapter 4.5.1. The following explanations mainly concern specific aspects of the RED.

Article 10.3 of the RED obliges the manufacturer to affix the CE marking to the radio equipment or its data plate when placing a product on the EU market unless this is not possible or not warranted on account of the nature of the radio equipment. This marking shall have a minimum height of 5 mm.

Additionally, the CE marking shall also be affixed visibly and legibly to the packaging.

Furthermore, the Blueguide, in section 4.5.1.4., also specifies that the CE marking must be affixed visibly, legibly and indelibly to the product or to its data plate.

CE marking in the battery compartment does not fulfil the visibility requirement and results in a formal non-compliance. A CE marking in the battery compartment renders the visibility of the CE mark more difficult, as after all, the 'CE marking, indicating the conformity of a product, is the visible consequence of a whole process comprising conformity assessment in a broad sense' (Recital 29 of Decision 768/08 and Recital 37 of Regulation 765/08). The same is true for any other place where the CE marking would only be visible when something has to be removed such as e.g. the bracelet of a watch, covers, etc

If the nature of the radio equipment does not allow a marking of at least 5 mm, the manufacturer may affix a CE marking that is smaller than 5 mm to the product under the condition that it remains visible and legible. If it not possible or not warranted on account of the nature of the radio equipment to affix a CE marking on the product, the manufacturer may affix it visibly and legibly only to the packaging and, if the product is made available without packaging, it can

be considered good and acceptable practice if the CE marking is provided as separate label (s) or in document (s) accompanying the product.

If the radio equipment is subject to other pieces of EU legislation which do not allow the CE marking to be smaller than 5 mm, then the possibility of using a smaller CE mark cannot be used by the manufacturer (e.g. RoHS).

If a notified body was involved in the conformity assessment procedure according to Annex IV, the CE marking⁵⁴ has to be followed by the identification number of the notified body in the same height as the CE marking in accordance with Article 20.3 of the RED. This identification number of the notified body shall be affixed by the notified body itself, or under its instructions by the manufacturer or his authorised representative. This identification number consists of four digits. Unless other pieces of EU legislation give more flexibility

Electronic CE-marking

The application of a CE marking in digital format, if used, can only be done in addition to the physical CE marking. The physical marking has to comply with the rules concerning CE marking including the NB number.

Medical Devices (custom-made)

Under the EU Medical Devices Legislation⁵⁵, custom-made medical devices being placed on the EU market and put into service shall not bear CE marking. If these custom-made medical devices contain radio equipment within the scope of RED and intended to be placed on the EU market, CE marking shall be affixed for the purposes of the RED.

Medical Devices (investigation-study)

Under Article 21 of Regulation 2017/745⁵⁶, investigational medical devices being supplied to an investigator for the purpose of a clinical investigation shall not bear the CE marking (with the exception of the devices referred to in Article 74 of that Regulation).

Under Article 19 of Regulation 2017/746⁵⁷, in vitro diagnostic medical devices for performance study being supplied for that purpose to laboratories or other institutions shall not bear the CE marking (with the exception of the devices referred to in Article 70 of that Regulation).

⁵⁴ So when the height of the CE Marking is less than 5 mm, as provided for in Article 19 (2) of the RED, the height of the identification number of the notified body will be also less than 5 mm.

⁵⁵ For the applicable legislative framework, see:
https://ec.europa.eu/growth/sectors/medical-devices/regulatory-framework_en

⁵⁶ [Regulation \(EU\) 2017/745 of the European Parliament and of the Council of 5 April 2017 on medical devices, amending Directive 2001/83/EC, Regulation \(EC\) No 178/2002 and Regulation \(EC\) No 1223/2009 and repealing Council Directives 90/385/EEC and 93/42/EEC](#)

⁵⁷ [Regulation \(EU\) 2017/746 of the European Parliament and of the Council of 5 April 2017 on in vitro diagnostic medical devices and repealing Directive 98/79/EC and Commission Decision 2010/227/EU \(Text with EEA relevance\)](#)

At this stage, such a device is not placed on the EU market, thus there is no requirement to affix the CE marking on that device even if it consists radio equipment within the scope of the RED. Once the device is intended to be placed on the EU market, it is subject to the requirement of CE marking in accordance with the EU Medical Devices Legislation as well as RED, if it consists of radio equipment within the scope of the RED.

Machinery Directive⁵⁸

Under the Machinery Directive, CE marking is not required for partly completed machinery. The partly completed machinery shall comply with the requirements set out in Article 13 of the MD. If the partly completed machinery contains radio equipment within the scope of the RED and is intended to be placed on the EU market, CE marking shall be affixed for the purposes of the RED.

The new Regulation⁵⁹ which will be applicable from 20th January 2027 and will repeal Directive 2006/42/EC with effect from 20th January 2027 will not impact this provision.

Specific cases

Lastly, for specific cases relating to the affixing of CE Marking on tags, see section 1.7.4.15;

g) Additional information

According to article 10.6 of the RED, the manufacturer shall ensure that their radio equipment bears a type or batch or serial number or other element allowing its identification.

In cases where the radio equipment is too small or the nature of the equipment does not allow it (if for example the surface of the equipment not suitable for printing), the above information shall be provided on the packaging or in a document accompanying the radio equipment.

Further details about this requirement can be found in Chapter 4.2.2.5 of the Blue Guide.

Lastly, for specific issues relating to tags, see section 1.7.4.15.

h) Traceability information

Details about this requirement can be found in Article 10.7 of the RED and further explanation in Chapter 4.2.2 of the Blue Guide.

Article 10.7 of the RED requires the name and address of the manufacturer to be present on the product or, under certain conditions, on the packaging or in the accompanying documentation. The name and address of the manufacturer present on the EU-DoC are not sufficient to fulfill the traceability requirement.

⁵⁸ Directive 2006/42/EC of the European Parliament and of the Council of 17 May 2006 on machinery, and amending Directive 95/16/EC ([OJ L 157, 9.6.2006, p. 24](#))

⁵⁹ Regulation (EU) 2023/1230 of the European Parliament and of the Council of 14 June 2023 on machinery and repealing Directive 2006/42/EC of the European Parliament and of the Council and Council Directive 73/361/EEC ([OJ L 165, 29.6.2023, p. 1–102](#))

Also, for specific cases relating to tags, see section 1.7.4.15.

Traceability information (name and address of the manufacturer and if applicable name and address of the importer does not need to be affixed indelibly, as requested for the CE marking. However, this information should be visible on the product, or on if applicable, the packaging or accompanying document. Meaning that screen protection labels (peel off transparent foil) with traceability information are allowed.

i) Geographical information in case of restrictions

Where restrictions on putting into service or requirements for authorisation for use of radio equipment exist in the Union, Article 10.10 of the RED requires manufacturers to add information on the package that allows the identification of the Member States or the geographical area within a Member State where these restrictions or requirements exist. When the product is made available without packaging, it can be considered good and acceptable practice if the pictogram/statement required by the first sentence of Article 10 (10) of the RED is provided as separate label (s) or in document (s) accompanying the product.

In addition, further information on the actual restrictions or requirements shall be completed in the instructions accompanying the radio equipment.

Restrictions on putting into service relate to national frequency allocations, i.e. frequencies that are not harmonised throughout the whole European Union. Requirements for authorisation of use relate to individual licencing or conditions attached to authorisation of use (licencing conditions), e.g. indoor/outdoor use or a minimum operation distance from certain protected/restricted areas. Other examples for conditions attached to authorisation of use are the requirements to hold an operator certificate, e.g. radio amateur examination certificate, short range certificate for use of marine VHF-radio.

The Commission adopted an implementing act specifying how to present this information⁶⁰. In particular, the implementing act provides two options on how the information can be presented on the packaging. The manufacturer may either provide, visibly and legibly, a brief written statement or a pictogram on the packaging.

Examples of pictogram (can be in either format):⁶¹

⁶⁰ Commission Implementing Regulation (EU) 2017/1354 of 20 July 2017 specifying how to present the information provided for in Article 10(10) of Directive 2014/53/EU of the European Parliament and of the Council (Text with EEA relevance), OJ L 190, 21.7.2017, p. 7–10.

⁶¹ Abbreviations of Member States and other related States (see Section 1.2): Belgium (BE), Bulgaria (BG), Czech Republic (CZ), Denmark (DK), Germany (DE), Estonia (EE), Ireland (IE), Greece (EL), Spain (ES), France (FR), Croatia (HR), Italy (IT), Cyprus (CY), Latvia (LV), Lithuania (LT), Luxembourg (LU), Hungary (HU), Malta (MT), Netherlands (NL), Austria (AT), Poland (PL), Portugal (PT), Romania (RO), Slovenia (SI), Slovakia (SK), Finland (FI), Sweden (SE), Northern Ireland (UK(NI)), Norway (NO), Iceland (IS), Lichtenstein (LI), Switzerland (CH), Türkiye (TR), Ukraine (UA), Moldova (MD), Georgia (GE).

given antenna type or a reference to a specific antenna(s) available on the EU market.

Software example:

- If the radio equipment has software (such as firmware, PC controlling software) that can affect its compliance with the Directive and the manufacturer intends and offers the possibility to the user to freely change it or modify it, then the software should be named in the instruction manual so that it is possible for the user to put a compliant radio equipment into operation. The manufacturer can decide the format of the description of this software as long as it can be identified.

On the other hand, if the radio equipment has software that cannot affect its compliance with the Directive, even when the software is modified or replaced, then no information has to be provided in the EU-DoC.

With the objective of supporting authorities on their market surveillance activities, Article 10.8 of the RED requires manufacturers to accompany radio equipment which intentionally emits radio waves with information on the frequency bands and maximum output power with which the equipment is able to operate in the EU.

Manufacturers have different alternatives to fulfil these requirements. For example, any of the following options could be added to the instructions:

- the nominal frequency and transmitted power (radiated and/or conducted) used by the radio equipment, as reflected in the Technical documentation, or
- for radio equipment using standardized technologies, e.g. GSM/3G/LTE, indication of the frequency band in the way they are commonly well-known (such as GSM 900, 1800). Where different power levels are possible, the nominal maximum power would be stated.
- The «<» symbol or «less than» should not be used to indicate the maximum transmitted power, also reference to power classes is not acceptable.
- For multimode equipment the frequency bands and maximum output power must only reflect those for use in the EU.
- It is recommended to provide information about the nominal maximum power level expressed in units as it is commonly done in official documents such as Commission decisions, (harmonised) standards, radio interfaces, etc.

For information relating to the common charger that needs to be provided, see Sections 12.2 and 12.3 to this Guide, as well as the Guidance for the interpretation of the Common Charger Directive.⁶²

The instructions shall also include detailed information, in a language easily understood by end-users as determined by the Member State, concerning any restrictions on putting into service or requirements for authorisation for use of radio equipment that exist in the EU (Article 10.10 RED)⁶³.

⁶² [C/2024/2997](#).

⁶³ See Section 2.8 i)

Format of instructions and safety information

The Blue Guide, in Chapter 3.1.4, provides more details on how the instructions and safety information need to be provided. According to the Blue Guide, whilst the safety information needs to be provided on paper, it is not required that all the set of instructions is also provided on paper but they can also be on electronic or other data storage format, however a paper version should always be available free of charge for the consumers who request it. It is noted that copy of the declaration of conformity (in its simplified or complete form) as the information in Article 10.8 (second sub-paragraph), information in Article 10.10 and information on specifications relating to charging capabilities and the compatible charging devices, as they are specifically required by the RED and not directly related with the general instructions of use, shall be provided in paper.

Note: see Omnibus IV which proposes targeted amendments to several EU legislative texts (including the RED) for introducing digital product information requirements⁶⁴

k) Series production

The manufacturer is responsible for the conformity of every single product manufactured and placed on the EU market. The manufacturer, who places a product on the EU market, shall ensure that, at that particular point in time, the product is in conformity with the applicable legislation.

For series production it is therefore crucial that the manufacturer monitors any changes in hardware/software, developments in applicable standards and legislation and that the state of the art is taken into account adequately. In addition, the considerations given by the manufacturer to these changes shall be reported in the technical Documentation. Details can be found in Chapters 2.3 and 3.1 of the Blue Guide.

l) Sample testing and register of complains

Article 10.5 (second sub-paragraph) of the RED obliges the manufacturer to carry out sample tests under certain conditions:

“When deemed appropriate with regard to the risks presented by radio equipment, manufacturers/importers shall, to protect the health and safety of end-users, carry out sample testing of radio equipment made available on the EU market, investigate, and, if necessary, keep a register of complaints, of non-conforming radio equipment and radio equipment recalls, and shall keep distributors informed of any such monitoring.”

In order to protect the health and safety of end users, manufacturers shall fulfil this requirement when the radio equipment presents a risk related to the essential requirement specified in Article 3.1.a.

Further details can be found in Chapter 3.1 of the Blue Guide.

⁶⁴ https://single-market-economy.ec.europa.eu/publications/omnibus-iv_en.

m) Action in case of non-compliance

According to Article 10.11 of the RED, in cases where the manufacturer considers or has a reason to believe that radio equipment which he has placed on the EU market is not in conformity with the Directive, the manufacturer shall take immediate corrective actions to:

- bring that radio equipment into conformity, or
- withdraw it, or
- recall it.

In addition, if the manufacturer considers that the radio equipment presents a risk, he shall immediately inform the competent national authorities of the Member States⁶⁵ in which they made the radio equipment available on the EU market.

The (post-placing on the EU market) risk assessment referred to in Article 10.11 of the RED is different to the (pre-placing on the EU market) risk assessment required by the RED to be part of the technical Documentation (see section 2.8d) .

The risk assessment referred to in Article 10.11 is the one Market Surveillance Authorities would perform in the course of their surveillance activities according to Article 40 of the RED.

Other economic operators also have obligations with regard to the corrective measures.

Corrective actions (e.g. software update) must be documented in the TD. In some cases the EU-DoC has to be updated.

Further details about this requirement can be found in Chapter 3.1 of the Blue Guide.

n) Cooperation with authorities

Manufacturers shall cooperate with competent national authority in the course of their surveillance activities according to Article 10.12 of the RED.

Further details about this requirement can be found in Chapter 3.1 of the Blue Guide.

o) Common charging interface

Radio equipment that is covered by the common charging interface requirements shall be equipped with an USB type C charging receptacle.

In so far as the radio equipment is capable of being recharged by means of wired charging at voltages higher than 5 Volts, currents higher than 3 Amperes or powers higher than 15 Watts, the concerned radio equipment shall incorporate the USB Power Delivery protocol and any additional charging protocol allows for the full functionality of the USB Power Delivery, irrespective of the charging device used.

⁶⁵ <https://webgate.ec.europa.eu/safety-business-gateway/screen/public/>

3. ESSENTIAL REQUIREMENTS (ARTICLE 3 OF THE RED)

3.1. General

As a large part of Union harmonisation legislation, the RED lays down “essential requirements”⁶⁶, which are mandatory provisions to ensure a high level of protection of public interest.

In the RED, the following essential requirements are defined:

- essential requirements applicable to all radio equipment;
- essential requirements applicable only to certain type of radio equipment pursuant to specific legal acts adopted by the Commission (delegated acts);
- essential requirements comply with the Common charging interface requirements applicable to specific categories/classes of radio equipment

3.2. Essential requirements applicable to all radio equipment

All radio equipment shall be constructed so as to ensure⁶⁷:

- Article 3.1.a RED: the protection of health and safety of persons and of domestic animals and the protection of property, including the objectives with respect to safety requirements set out in Directive 2014/35/EU (LVD), but with no voltage limit applying;

Therefore, battery-operated radio equipment, such as a GSM handset, is also subject to this essential requirement and has to ensure that, the limits for human exposure to electromagnetic fields are respected. In this respect, the manufacturer has also to take into account the reasonably foreseeable conditions of use (Article 17.1 of the RED).

This essential requirement covers all health and safety risks arising from the use of equipment, e.g. electrical, mechanical and chemical (e.g. emission of aggressive substances) as well as (but not exclusively) health aspects relating to noise, vibration and ergonomic aspects.

Article 3.1a of the RED cross refers to the safety objectives of the LVD which do not have any references to mental health (not creating risks for consumers’ cognitive abilities or causing depression, anxiety or poor sleep quality). For this aspect, the General Product Safety Regulation (EU) 2023/988 (GPSR)⁶⁸, when applicable, might be of relevance⁶⁹.

Moreover, Article 3.1(a) of the RED does not cover risks resulting from the fact that the product is not performing as promised, and which are not related to the hazards set out in the safety objectives of the LVD. For

⁶⁶ More information on the principle of essential requirements can be found in Chapter 4.1 of the Blue Guide.

⁶⁷ Articles 3.1 and 3.2 of the RED

⁶⁸ [Regulation \(EU\) 2023/988 of the European Parliament and of the Council of 10 May 2023 on general product safety, amending Regulation \(EU\) No 1025/2012 of the European Parliament and of the Council and Directive \(EU\) 2020/1828 of the European Parliament and the Council, and repealing Directive 2001/95/EC of the European Parliament and of the Council and Council Directive 87/357/EEC](#)

⁶⁹ See section 1.2 of [Commission notice – Guidelines on the application of the EU general product safety legislative framework by businesses](#)

example, a GPS displaying inaccurate maps that guide a user into danger is not covered by Article 3.1(a) of the RED.

- Article 3.1.b RED: an adequate level of electromagnetic compatibility as set out in Directive 2014/30/EU.
- Article 3.2 RED: that it both effectively uses and supports the efficient use of radio spectrum in order to avoid harmful interference (recitals 10 and 11 of the RED).

3.3. Essential requirements applicable only to a certain type of radio equipment and if relevant delegated acts exist

The legislator gave the Commission the possibility to activate defined essential requirements for certain type of radio equipment. In order to make these essential requirements applicable, the Commission has first to adopt decisions, so called delegated acts⁷⁰, to specify the categories or classes of radio equipment which have to fulfil such requirements. If no delegated act is adopted by the Commission for a specific category of radio equipment, then the requirements of Article 3.3 remain not applicable.

It should be noted that Commission Decisions adopted under Article 3.3 of the R&TTED continue to be valid (see section 9.2).

The essential requirements included in Article 3.3 are:

- radio equipment interworks with accessories other than the charging devices for the categories or classes of radio equipment, specified in Part I of Annex Ia, which are specifically referred to in Article 3.4
- currently no delegated act
- radio equipment interworks via networks with other radio equipment (Article 3.3.b);
- currently no delegated act
- radio equipment can be connected to interfaces of the appropriate type throughout the Union (Article 3.3.c);
- currently no delegated act
- radio equipment does not harm the network or its functioning nor misuse network resources, thereby causing an unacceptable degradation of service (Article 3.3.d);
- [Commission Delegated Regulation \(EU\) 2022/30](#) of 29 October 2021 supplementing Directive 2014/53/EU of the European Parliament and of the Council with regard to the application of the essential requirements referred to in Article 3(3), points (d), (e) and (f), of that Directive

[Commission Delegated Regulation \(EU\) 2023/2444](#) of 20 July 2023 amending Delegated Regulation (EU) 2022/30 as regards the date of application of the essential requirements for radio equipment and correcting that Regulation (Applicable from 1 August 2025)

⁷⁰ The Treaty on the Functioning of the European Union (Article 290) allows the EU legislator to delegate to the Commission the power to adopt acts that supplement or amend certain non-essential elements of a legislative act.

Note: These Delegated Regulations are repealed as of 11 December 2027 pursuant to Commission Delegated Regulation (EU) 2026/339 of 16 February 2026.

- radio equipment incorporates safeguards to ensure that the personal data and privacy of the user and of the subscriber are protected (Article 3.3.e);
- [Commission Delegated Regulation \(EU\) 2022/30](#) of 29 October 2021 supplementing Directive 2014/53/EU of the European Parliament and of the Council with regard to the application of the essential requirements referred to in Article 3(3), points (d), (e) and (f), of that Directive;
- [Commission Delegated Regulation \(EU\) 2023/2444](#) of 20 July 2023 amending Delegated Regulation (EU) 2022/30 as regards the date of application of the essential requirements for radio equipment and correcting that Regulation (Applicable from 1 August 2025)

Note: These Delegated Regulations are repealed as of 11 December 2027 pursuant to Commission Delegated Regulation (EU) 2026/339 of 16 February 2026.

- radio equipment supports certain features ensuring protection from fraud (Article 3.3.f);
- [Commission Delegated Regulation \(EU\) 2022/30](#) of 29 October 2021 supplementing Directive 2014/53/EU of the European Parliament and of the Council with regard to the application of the essential requirements referred to in Article 3(3), points (d), (e) and (f), of that Directive
- [Commission Delegated Regulation \(EU\) 2023/2444](#) of 20 July 2023 amending Delegated Regulation (EU) 2022/30 as regards the date of application of the essential requirements for radio equipment and correcting that Regulation (Applicable from 1 August 2025)

Note: These Delegated Regulations are repealed as of 11 December 2027 pursuant to Commission Delegated Regulation (EU) 2026/339 of 16 February 2026.

- radio equipment supports certain features ensuring access to emergency services (Article 3.3.g);
- [2000/637/EC](#): Commission Decision of 22 September 2000 on the application of Article 3(3)(e) of Directive 1999/5/EC to radio equipment covered by the regional arrangement concerning the radiotelephone service on inland waterways
- [2001/148/EC](#): Commission Decision of 21 February 2001 on the application of Article 3(3)(e) of Directive 1999/5/EC to avalanche beacons
- [2013/638/EC](#): Commission Decision of 12 August 2013 on essential requirements relating to marine radio communication equipment which is intended to be used on non-SOLAS vessels and to participate in the Global Maritime Distress and Safety System (GMDSS)
- [2005/53/EC](#): Commission Decision of 25 January 2005 on the application of Article 3(3)(e) of Directive 1999/5/EC of the European Parliament and of the

Council to radio equipment intended to participate in the Automatic Identification System (AIS)

- [2005/631/EC](#): Commission Decision of 29 August 2005 concerning essential requirements as referred to in Directive 1999/5/EC of the European Parliament and of the Council ensuring access of Cospas-Sarsat locator beacons to emergency services
- [Commission Delegated Regulation \(EU\) 2019/320](#) of 12 December 2018 with regard to the application of the essential requirements referred to in Article 3(3)(g) of Directive 2014/53/EU in order to ensure caller location in emergency communications from mobile devices (Date of applicability 17 March 2022)
- [guidelines for compliance with Delegated Regulation \(EU\) 2019/320](#)
- radio equipment supports certain features in order to facilitate its use by users with a disability (Article 3.3.h);
- currently no delegated act
There are accessibility requirements for some RED products under the [EAA \(EU\) 2019/882](#) (European Accessibility Act). The date of applicability is 28 June 2025
- radio equipment supports certain features in order to ensure that software can only be loaded into the radio equipment where the compliance of the combination of the radio equipment and software has been demonstrated (Article 3.3.i);
- currently no delegated act

3.4. Essential requirement to comply with the common charging interface requirements^{71 72}

Radio equipment capable of being recharged by means of wired charging and falling within the categories or classes specified in Part I of Annex Ia shall be so constructed that it complies with the specifications relating to charging capabilities set out in that Annex for the relevant category or class of radio equipment.

Commission is empowered to adopt delegated acts in accordance with Article 44 of the RED to amend Annex Ia to the RED, in the light of scientific and technological progress or market developments in order to ensure a minimum common interoperability between radio equipment and its charging devices, as well as to improve consumer convenience, to reduce environmental waste and to avoid market fragmentation.

⁷¹ Introduced by [Directive \(EU\) 2022/2380 of the European parliament and of the council November 2022 amending Directive 2014/53/EU on the harmonisation of the laws of the Member States relating to the making available on the market of radio equipment](#)

⁷² Commission Delegated Regulation (EU) 2023/1717 https://eur-lex.europa.eu/legal-content/EN/TXT/?uri=uriserv%3AOJ.L_.2023.223.01.0001.01.ENG

For details on the scope and applicability of this essential requirement, including the dates of applicability, see sections 12.2 and 12.3 to this Guide, as well as the Guidance for the interpretation of the Common Charger Directive.⁷³

4. REQUIREMENTS OF ARTICLES 3A, 4 AND 5 OF THE RED

In addition to the essential requirements, the RED has specific requirements in its Articles 3a, 4 and 5.

Article 3a

This requirement gives the possibility to consumers and other end-users to acquire certain categories or classes of radio equipment without a charging device.

It also requires economic operators to provide relevant information (whether or not a charging device is included with such radio equipment) in the form of pictogram.

For more details, see Guidance for the interpretation of the Common Charger Directive.⁷⁴

Article 4

This requirement is about the obligation of manufacturers of radio equipment and of software allowing radio equipment to provide information on the compliance of intended combinations of radio equipment and software with the RED essential requirements.

It is applicable if related delegated and implementing acts are adopted and only to the categories/classes of radio equipment specified in such delegated act.

Currently there are no such delegated/implementing acts.

Article 5

This requirement is about the registration of radio equipment types within categories of radio equipment affected by a low level of compliance with the RED essential requirements within a central system.

It is applicable if related delegated and implementing acts are adopted and only to the categories/classes of radio equipment specified in such delegated act.

Currently there are no such delegated/implementing acts.

⁷³ [C/2024/2997](#).

⁷⁴ [C/2024/2997](#).

5. INTERFACE REGULATIONS & SPECIFICATIONS

5.1. Notification of radio interface specifications

Interface regulations (often called “interface specifications” or even “interface requirements”) relate to the Member States’ obligation under Article 8.1 to notify the Commission of the interfaces which they have regulated.

A common template has been developed with a respective guide which are available on the Commission website⁷⁵

The relevant information may be found on the national websites of the spectrum authorities (links are available on the [Commission’s website](#)) or also in the [EFIS](#) database.

5.2. Assignment of radio equipment classes

The Commission has to establish, based on Article 8.2 of the RED, the equivalence between these national radio interface specifications.

The Commission shall adopt implementing acts establishing the equivalence between notified radio interfaces and assigning a radio equipment class, details of which shall be published in the Official Journal of the European Union.

Commission Decisions adopted under the R&TTED remain applicable under the RED to the extent that they are not incompatible with the RED (see Section 9.2). Therefore, Commission Decision 2000/299/EC of 6 April 2000 establishing the initial classification of radio equipment and telecommunications terminal equipment and associated identifiers, adopted under Article 4.1 of the R&TTED, remains valid with the exception of the provisions that refer to the alert sign.

The class identifier as “information sign” or “alert sign”, required by the R&TTED, is not required by the RED and instead the manufacturer is required to provide information in accordance with Article 10.10 of the RED when restrictions on putting into service or of requirements for authorisation of use exist in one or more Member States.

Under Commission Decision 2000/299/EC the following classes are defined:

- Class 1: radio equipment that can be operated without any restriction in the whole EU.
- Class 2: radio equipment whose putting into service or use is subject to restrictions. Examples of such restrictions are:
 - frequency available and allowed for that application in certain Member States only;
 - individual licence needed to use the specific radio equipment and compliance with attached conditions, as e.g. the need of an operator certificate;
 - indoor use only;

⁷⁵ [Radio Equipment Directive \(RED\) - European Commission](#)

To be considered Class 1 equipment, radio equipment must respect the technical characteristics of the subclass concerned (the radio interface). The technical parameters to be respected for a given subclass can be viewed by clicking on the number associated with that subclass.

If the radio equipment uses frequencies not falling within the scope of 'Class 1' will be classified as Class 2 and might be subject to restrictions.

The class 1 template may be found on the [Commission's website](#).

6. HARMONISED STANDARDS

6.1. Introduction

Chapter 4.1.2.5 of the Blue guide gives information on the role and application of harmonized standards.

The application of harmonized standards is voluntary but has the advantage of giving "presumption of conformity" (if references are published in the Official Journal of the European Union under the RED) with the corresponding essential requirements that they aim to cover. Harmonised standards mainly address aspects related to the essential requirements. Harmonised standards may contain other aspects. In ETSI harmonised standards Annex A describes the relationship between the harmonised standard and the essential requirements of Directive 2014/53/EU. If a manufacturer chooses not to follow a harmonised standard or only partly, he has the obligation to prove that his radio equipment is in conformity with the essential requirements by other means and to provide a full technical justification.

The Commission's website⁷⁶ gives information on titles and references to harmonised standards in relation to the RED, however the only valid list is the most recent one published in the OJEU.

The date of withdrawal from OJ (end of presumption of conformity) of the superseded standard should not be confused with the date of withdrawal ("DOW") of a superseded standard indicated by a standards organisation. The DOW has no relevance within the concept of the RED.

The cessation of presumption of conformity applies only to those individual items which are not yet placed on the EU market. In other words, it does not affect radio equipment already placed on the EU market, neither its presumption of conformity, nor the validity of its EU-DoC.

Any current reference of a standard taken from the latest valid OJEU list may be applied as a harmonised standard, until the date of cessation of presumption of conformity of that harmonised standard is reached. a manufacturer can apply also harmonised standard that doesn't provide presumption of conformity anymore((see section 6.3).

⁷⁶ https://ec.europa.eu/growth/single-market/european-standards/harmonised-standards/rte_en

6.2. Generic harmonised standards vs product specific harmonised standard

A manufacturer which has the intention to apply a harmonised standard for the conformity assessment of its products, has to apply in priority the product specific harmonised standard and only if this one is not available, the generic one, in order to benefit of presumption of conformity with the essential requirements of the RED.

6.3. Revision of harmonised standards

Manufacturers who have applied a superseded harmonised standard which no longer provides presumption of conformity against art. 3.2 or 3.3 and do not wish to apply the new harmonised standard, need to involve a notified body in order to continue placing the radio equipment on the EU market.

Chapter 4.1.2.5 of the Blue Guide gives detailed information on the revision of harmonised standards.

6.4. Tolerances and measurement uncertainties in harmonised standards

6.4.1. Tolerances on limits set for compliance of products

Harmonised standards are requested to define technical specifications to presume compliance with specific pieces of EU legislation. Typically, they establish maximum or minimum values or even ranges (herein after “limits”) which the manufacturer is called to respect.

Tolerances in technical requirement specifications in harmonised standards could allow manufacturers to overcome the limits if used as a variation of the limit by means of a margin. In such cases, tolerances cannot be accepted in harmonised standards in support of the NLF.

6.4.2. Other tolerances not linked to the product itself

All other tolerances present in the standard (e.g. on the test setup) shall not substantially impact the compliance and shall be in line with the accuracy of the common, economically viable, best practices.

6.4.3. Measurement uncertainty

Measurement uncertainty is an estimate of the statistical error relating to a measured quantity. Testing equipment can be affected by erratic physical phenomena which can have an impact on the final measurement. Also, the test set-up can have an impact on the overall measurement uncertainty: set-ups that involve higher number of equipment or simulated scenarios can be more subject to higher uncertainty.

The quality of the testing equipment is also linked to the final uncertainty: more sophisticated products should provide with more accurate measurements and therefore with a lower degree of uncertainty.

Measurement uncertainties are usually expressed by a margin around the final measured value.

6.4.4. Maximum measurement uncertainties

Harmonised standards can establish maximum measurement uncertainties, which is in turn linked to the improvement of the accuracy of the measurements. The standardisers should reflect the state of the art of the maximum measurement uncertainties when proposing them in harmonised standards in support of the RED.

6.4.5. Technological neutrality

This approach on tolerances and measurement uncertainties is independent of the radio equipment technology or its technical parameters defined in the harmonised standards in support of the RED.

7. NOTIFIED BODIES

7.1. Introduction

If the manufacturer has not applied or not fully applied all relevant parts of the relevant harmonised standards, that are cited in the OJEU, applicable to the radio equipment in order to cover Article 3.2 and 3.3 of the Directive, the manufacturer must use a conformity assessment procedure which involves a notified body (either the Annex III or the Annex IV procedure).

It is possible that a harmonised standard is cited in the OJEU with a restriction. In such a case it depends on the specific restriction if this harmonised standard can still provide full presumption of conformity.

An involvement of the Notified Body is also necessary, if the applicable harmonised radio standard listed in the OJEU does not cover all aspects of the conformity assessment due to the restriction. If the manufacturer is certain, that the restriction does not apply to the radio equipment, then the involvement of the Notified Body is not needed. For the assessment of the fulfilling of the essential requirements covered by Article 3.1.a, 3.1.b and 3.4 of the Directive, the manufacturer has either the choice to perform the assessment without involving a NB (Annex II) or involve on a voluntary basis a NB (Annex III or Annex IV procedure).

See also Figure 1: Overview of the different conformity assessment procedures.

Given that the essential requirements of the RED are separated into the following areas which can be called 'aspects':

health and safety (Article 3.1.a); electromagnetic compatibility (Article 3.1.b); radio spectrum (Article 3.2); and other requirements (first subparagraph of Article 3.3): each point of that subparagraph, e.g. (a) or (b), represents a separate aspect; and common charger interface (Article 3.4),

for each of those aspects, in Article 3, the manufacturer may choose a notified body which is different from the body chosen for any of the other aspects or chosen, under another applicable Union legislation, for the purposes of that other Union legislation⁷⁷.

Anyway, an involvement of a Notified Body can only be mandatory for assessing the requirements for Articles 3(2) and (3) of the RED and the manufacturer may choose not to involve a notified body for the requirements in Article 3 (1) or (4), even if it is mandatory to involve a notified body for Article 3(2) or (3) of the RED.

7.2. General concept

Notified bodies are designated by the competent authorities of the EU Member States, EEA members and other countries with which the EU has concluded Mutual Recognition Agreements (MRAs) to perform the conformity assessment tasks described in the Directive. Notified bodies can be designated for all essential requirements or only specific essential requirements or aspects such as a specific decision or delegated act under article 3.3. Notified bodies can be designated to be involved in only a conformity assessment module (Annex III or Annex IV or both) and for all radio equipment or only for selected types of radio equipment.

A list of all designated notified bodies is published on the Commission's website⁷⁸. This list includes general information of notified body as the address where it can be contacted, its identification number as well as the scope for which it has been notified.

7.2.1. Annex III procedure — EU-type examination and conformity to type based on internal production control

The manufacturer lays down in a mandate to the notified body the essential requirements of the RED have to be assessed. For example, the manufacturer could require the assessment against EMC (Art. 3.1.(b) to be covered by the Directive) and the effective use of the spectrum (Art. 3(2) of the Directive) and not require the safety issues to be covered (Art. 3(1) (a) of the Directive).

Where a notified body performs an examination of the technical Documentation of an equipment that contains a radio part for which already a notified body EU type examination Certificate is available then the notified body may accept the results of that previous Examination without the need to repeat the assessment of that product part.

The Directive requires compliance when equipment is “properly installed and maintained and used for its intended purpose”. The notified body shall therefore note any inconsistencies between obvious uses of the equipment and the stated

⁷⁷ The body chosen shall be a notified body which has been designated by an EU Member State to assess the conformity of the product in question with respect to the aspects in question.

⁷⁸ <http://ec.europa.eu/growth/tools-databases/nando/>

intended purpose so that its EU-Type Examination may be suitably qualified and is not open to misinterpretation.

An aspect relevant to the intended purpose may be the number of units of equipment likely to be put into service and their overall potential for harmful effects to the radio spectrum.

Control of the spectrum remains essentially a national matter and so it is essential to consider the spectrum plan for the intended location(s) of use and any relevant interface regulations for the Member State(s) concerned. In this context “location” implies not only the physical placement but also any relevant environmental factors. In some cases, it may be necessary to liaise directly with the spectrum authority for the relevant Member State.

The notified body must base its EU-Type Examination Certificate on the requirements of the Directive and on the professional assessment of the technical documentation. They may take into account relevant other EU legislation, standardisation documents, technical references as ECC reports or REDCA Technical Guidance Notes available at that time.

The EU Type Examination Certificate is issued for whole aspects e.g only for Health & Safety (3.1a), or only for EMCD (3.1b), or only for radio Spectrum (3.2) or the rest (3.3 d, e, f etc) or a combination thereof. In case of multi-radio product, if one radio part does not have the harmonised standard listed in OJEU, then the EU Type examination certificate should cover all radio parts. This would also include the radio part whose harmonised standard listed in OJEU is available, as whole article need to be assessed. However, each article is independent of each other, and different Notified body can be used for different articles.

Annex III does not provide guidance on the format and content of the EU-Type Examination Certificate. In all other respects, a notified body is free to choose its own format and may include additional information such as the manufacturer's details, conformity assessment procedure, reference standards, intended purpose and other remarks/observations.

However the notified body shall take account of the following aspects for the Certificate:

Title “Directive 2014/53/EU — Notified Body EU-Type Examination Certificate” or similar text and avoiding the use of words such as “opinion” and “declaration”.

Insert on the Certificate:

- Notified body Name, address etc., (logo if relevant).
- Notified body number.
- EU-Type Examination Certificate number - this shall be the unique number of EU-Type Examination Certificate. A revision number and/or copy number shall be included if applicable.
- Date of issue of the Certificate and its Validity (can be issued before the date of applicability of the requirements) Applicant details. Name, address etc. of the party requiring the EU-Type Examination Certificate.

- Scope of examination whether the certificate is covering health & safety (Article 3(1) (a)), EMC (Article 3(1) (b)), radio spectrum use (Article 3(2)) and/or special radio features (Article 3(3) (a)-(f)) and/or 3.3g and a specific decision or delegated regulation. [3.4]
- Clear identification of the radio equipment. The goal is to give the minimum information from the following list such that a third party would be able to uniquely identify the item in question.
 - Description of radio equipment, including brand/trade name, model/type designation, hardware and software (where it affects the RED conformity) revision.
 - Reference of any build status/design Documentation taken into account.
 - Technical Documentation identification
 - Unique identification of the Documentation etc. taken into consideration irrespective of the actual physical format of the documentation
- Certification text - the text stating whether or not the radio equipment is compliant.
- Authorised signatory (signature block including printed name of the signatory).

7.2.2. Annex IV procedure — Conformity based on full quality assurance

Assessments to verify compliance of the quality management system with the requirements must be performed under the responsibility of the notified body. Where the manufacturer's quality system has already been certified to related quality plans by an accredited certification body the notified body will normally not duplicate assessments of compliance with those requirements, but will seek assurance that the Directive specific issues have been taken into account.

The manufacturer must retain the declarations of conformity as a record of what he has placed on the EU market via the Annex IV procedure. The notified body must have access to these EU-DoCuments, and to all relevant Documentation supporting the declaration of conformity.

7.3. Information exchange

Article 36, Annex III (Module B, para 8)⁷⁹ and Annex IV (para 7) of the RED contain requirements for notified bodies regarding providing specific information to certain organisations such as other notified bodies, authorities, etc.

Notified bodies should check the NB coordination group: the Radio Equipment Directive Compliance Association (REDCA) whether available procedures to

⁷⁹ One of the obligations, in Annex III of the RED, is that each notified body shall inform the Member States of EU-type examination certificates it has issued and/or additions thereto in those cases where harmonised standards the references of which have been published in the Official Journal of the European Union have not been applied or not been fully applied. This obligation to inform the Member States does not include the situation where harmonised standards do not exist.

facilitate an easy exchange of information exists within REDCA (for example use of specific email communication and/or CIRCABC).

After having issued an EU-Type Examination Certificate the RED Notified Body is obliged to inform the Member States, in those cases where harmonised standards, if their references have been published in the OJEU, have not been applied or not been fully applied (RED Annex III point 8, paragraph 3).

7.4. Coordination between notified bodies

Recognizing that it is necessary for the conformity assessment procedures to be applied consistently by all parties in order to achieve an open and competitive market throughout Europe, the Radio Equipment Directive Compliance Association (REDCA) has been set up.

The REDCA contributes to the effective implementation of relevant legislation in cooperation with the Committee set up under the Directive (i.e. TCAM) and facilitates the convergence of conformity assessment practices in the regulatory sphere. The REDCA liaises with relevant organisations such as ETSI, ECC and ADCO RED.

The REDCA issues information sheets, called Technical Guidance Notes — TGNs — which have been drawn up to assist the notified body in its task. These TGNs may also contain valuable background information for manufacturers.

Furthermore REDCA provides Reference documents for its member containing valuable information to support the work of the notified bodies.

8. MARKET SURVEILLANCE AND ENFORCEMENT

Member States are required to take all appropriate measures to ensure that radio equipment covered by the RED which is placed on the EU market complies with the requirements of the RED.

The RED itself sets requirements for market surveillance in Articles 39-43 and also it refers to Regulation 2019/1020⁸⁰. Detailed provisions on how surveillance should be organised and carried out in the Member States are given in chapter 7 of the Blue Guide.

In addition to the Blue Guide other specific market surveillance guidance documents may be available.

Information sheet on obligations associated with the placing of radio equipment on the EU market (Directive 2014/53/EU)⁸¹ -

<https://ec.europa.eu/docsroom/documents/42081>

National requirements for spectrum use during demonstrations and field tests⁸² -

<https://ec.europa.eu/docsroom/documents/48414>

⁸⁰ Regulation (EU) 2019/1020 of the European Parliament and of the Council of 20 June 2019 on market surveillance and compliance of products and amending Directive 2004/42/EC and Regulations (EC) No 765/2008 and (EU) No 305/2011 –

<https://eur-lex.europa.eu/eli/reg/2019/1020/oj/eng>

⁸¹ <https://ec.europa.eu/docsroom/documents/42081>

Common statement on traceability requirements under the RED -

<https://ec.europa.eu/docsroom/documents/41263>⁸³

A list of the Member State surveillance authorities can be found on the Commission's webpage⁸⁴.

Market surveillance authorities have special procedures in place for the protection of persons (whistleblowers) who report non-compliances.⁸⁵

9. DELEGATED ACTS, IMPLEMENTING ACTS AND COMMISSION DECISIONS

9.1. Delegated and Implementing acts

The Directive empowers the Commission to adopt delegated and implementing acts on several issues⁸⁶.

9.1.1. Delegated acts

- Essential requirements relating to Article 3.3⁸⁷
- Common charger rules relating to Article 3(4), Article 3a(2), second subparagraph, and Article 10(8), fifth subparagraph
- Information on the compliance of combinations of radio equipment and software (Article 4)⁸⁸
- Registration (Article 5)⁸⁹

9.1.2. Implementing Acts

- Clarify the definition of radio equipment (Article 2.2)⁹⁰
- Operational rules for the information on the compliance of combinations of radio equipment and software (Article 4)⁹¹
- Operational rules for Registration (Article 5)⁹²

⁸² <https://ec.europa.eu/docsroom/documents/48414>

⁸³ <https://ec.europa.eu/docsroom/documents/41263>

⁸⁴ https://single-market-economy.ec.europa.eu/document/download/dc79e710-71f2-473e-984d-d04cbf0b866f_en?filename=Radio%20Equipment%20Directive%202014_53_EU%20-%20Spectrum%20Authorities%20-%202025.01.03.pdf

⁸⁵ [DIRECTIVE \(EU\) 2019/1937](#) OF THE EUROPEAN PARLIAMENT AND OF THE COUNCIL of 23 October 2019 on the protection of persons who report breaches of Union law

⁸⁶ For more information on delegated and implementing acts, see: <http://eur-lex.europa.eu/legal-content/EN/TXT/?uri=uriserv:ai0032>

⁸⁷ see Section 3.3

⁸⁸ Until the date of publication of this Guide, no delegated act has been issued; therefore, this Guide does not contain analysis on Article 4.

⁸⁹ Until the date of publication of this Guide, no delegated act has been issued; therefore, this Guide does not contain analysis on Article 5.

⁹⁰ Until the date of publication of this Guide, no implementing act has been adopted under this Article.

⁹¹ Until the date of publication of this Guide, no implementing act has been adopted under this Article.

⁹² Until the date of publication of this Guide, no implementing act has been adopted under this Article.

- Establish the equivalence between notified radio interfaces and assigning a radio equipment class (Article 8.2)⁹³
- Information on restrictions on putting into service or requirements for authorisation of use exist (Article 10.10)⁹⁴
- Withdrawal of a notified body (Article 33.4)⁹⁵
- Determining whether the national measure to prohibit or restrict the radio equipment is justified or not (Article 41.1)⁹⁶
- Compliant equipment which presents a risk (Article 42.4)⁹⁷

9.2. Commission Decisions adopted under the R&TTED

Article 50 of the RED provides that references to the repealed Directive (i.e. R&TTED) shall be construed as references to this Directive (i.e. the RED).

Therefore, any Commission Decisions, adopted under the R&TTED, remain applicable under the RED to the extent that they are not incompatible with the RED, until they are repealed⁹⁸.

For the Decisions adopted under Article 3(3) of the R&TTED, these are the following:

- a) [Commission Decision 2005/631/EC](#) of 29 August 2005 concerning essential requirements as referred to in Directive 1999/5/EC of the European Parliament and of the Council ensuring access of Cospas-Sarsat locator beacons to emergency services (OJ L 225, 31.8.2005, p. 28);
- b) [Commission Decision 2005/53/EC](#) of 25 January 2005 on the application of Article 3(3)(e) of Directive 1999/5/EC of the European Parliament and the Council to radio equipment intended to participate in the Automatic Identification System (AIS) (OJ L 22, 26.1.2005, p. 14);
- c) [Commission Decision 2013/638/EU](#) of 12 August 2013 on essential requirements relating to marine radio communication equipment which is intended to be used on non-SOLAS vessels and to participate in the Global Maritime Distress and Safety System (GMDSS) (OJ L 296, 7.11.2013, p. 22);
- d) [Commission Decision 2001/148/EC](#) of 21 February 2001 on the application of Article 3(3)(e) of Directive 1999/5/EC to avalanche beacons (OJ L 55, 24.2.2001, p. 65);
- e) [Commission Decision 2000/637/EC](#) of 22 September 2000 on the application of Article 3(3)(e) of Directive 1999/5/EC to radio equipment covered by the regional arrangement concerning the radiotelephone service on inland waterways (OJ L 269, 21.10.2000, p. 50). Commission Decision 2005/631/EC.

⁹³ See Section 5.2

⁹⁴ See Section 2.3 i)

⁹⁵ Until the date of publication of this Guide, no implementing act has been adopted under this Article.

⁹⁶ This implementing act is not adopted in accordance with the procedures of Regulation (EU) No 182/2011; until the date of publication of this Guide, no implementing act has been adopted under this Article.

⁹⁷ Until the date of publication of this Guide, no implementing act has been adopted under this Article.

⁹⁸ See Sections 3.3, 5.2 and 10.7

In addition, Commission Decision 2000/299/EC of 6 April 2000 establishing the initial classification of radio equipment and telecommunications terminal equipment and associated identifiers, adopted under Article 4.1 of the R&TTED, remains valid except for the provisions that refer to the 'Alert sign'.

10. OTHER APPLICABLE OR RELATED EU LEGISLATION

10.1. General

Products can be covered by more than one Union harmonisation act. If one or more of these acts do not exclude the application of the other Union harmonisation legislation, then all relevant legislation apply simultaneously.

In this case, the manufacturer must ensure that the product complies with all applicable Union Harmonisation Legislation.

(see Chapter 2.7 “Simultaneous Application of Union Harmonisation Acts” of the Blue Guide).

10.2. EU Environmental legislation

Radio equipment is generally also covered by environmental legislation such as RoHS (Restrictions of Hazardous Substances), WEEE (Waste Electrical and Electronic Equipment), REACH (Registration, Evaluation, Authorisation and Restriction of Chemicals), Packaging⁹⁹, ESPR¹⁰⁰ and Ecodesign Regulation for EPSes.

The relevant requirements focus on the design, production and disposal phases of the life cycle of electronic products.

For more information, see the relevant links from the Commission website.¹⁰¹

10.2.1. Commission Regulation (EU) 2025/2052¹⁰²

Information on the relevant interoperability specifications should be provided by means of a ‘Common Charger’ logo. This should be affixed to corresponding EPS to inform consumers that they are interoperable and that the same EPS can

⁹⁹ https://environment.ec.europa.eu/topics/waste-and-recycling/packaging-waste_en

¹⁰⁰ Regulation (EU) 2024/1781 of the European Parliament and of the Council of 13 June 2024 establishing a framework for the setting of ecodesign requirements for sustainable products, amending Directive (EU) 2020/1828 and Regulation (EU) 2023/1542 and repealing Directive 2009/125/EC

¹⁰¹ http://ec.europa.eu/environment/waste/weee/index_en.htm
http://ec.europa.eu/environment/waste/rohs_eee/index_en.htm
<http://ec.europa.eu/energy/en/topics/energy-efficiency>
http://ec.europa.eu/environment/chemicals/reach/reach_en.htm

¹⁰² Commission Regulation (EU) 2025/2052 of 13 October 2025 laying down ecodesign requirements for external power supplies, wireless chargers, wireless charging pads, battery chargers for portable batteries of general use and USB Type-C cables, pursuant to Directive 2009/125/EC of the European Parliament and of the Council and repealing Commission Regulation (EU) 2019/1782

be used for a number of different devices or different generations of the same device. That would reduce the number of EPS required and facilitate their replacement, thus improving the environmental aspects of the product. The 'Common Charger' logo on EPS should complement the label required for powered products under the RED which provides the end-user with the necessary information to select a suitable EPS.

Upcoming alignment of the label with ecodesign requirements on EPSes via Delegated Act in preparation.

10.3. Applicability of RED with other EU acts on safety or EMC

When RED is applicable simultaneously with any other EU legislation covering the same hazard (safety or EMC), the issue of overlap might be resolved by giving preference to the more specific EU legislation.¹⁰³

Examples of such equipment:¹⁰⁴

- radio equipment incorporated, in a fixed and permanent way, in a non-radio product at the moment of its placing on the EU market (i.e. in such a way that it cannot be easily accessed and readily removed); this product is deemed to be a single radio equipment and might also be subject to the EU legislation on Medical Devices or Toys or Machinery etc.;
- ground aviation radio equipment which might also be subject to the EU legislation on Civil Aviation.
- radio equipment for vehicles which might also be subject to the EU legislation on Motor Vehicles.
- drones/UAS that are considered as radio equipment might also be subjected to the EU legislation on UAS.
- radio equipment with integrated batteries might also be subjected to the EU legislation on batteries.

10.4. General Product Safety Regulation (EU) 2023/988 (GPSR)¹⁰⁵

The GPSR replaces, as of 13/12/2024, the General Product Safety Directive 2001/95/EC, establishing a general obligation to place only safe consumer products on the EU market as well as a procedure for the adoption of standards covering risks and categories of risks.

With regard to the link of GPSR with products subject to specific requirements imposed by Union harmonisation legislation (such as the RED), see section 2.2

¹⁰³ Conformity with the RED and with the other Union harmonisation legislation shall be assessed and declared. The declaration of conformity shall make reference to all applicable Union harmonisation legislation.

¹⁰⁴ For internal market legislation on specific sectors, see: http://ec.europa.eu/growth/sectors_en

¹⁰⁵ [Regulation \(EU\) 2023/988 of the European Parliament and of the Council of 10 May 2023 on general product safety, amending Regulation \(EU\) No 1025/2012 of the European Parliament and of the Council and Directive \(EU\) 2020/1828 of the European Parliament and the Council, and repealing Directive 2001/95/EC of the European Parliament and of the Council and Council Directive 87/357/EEC](#)

of the [Commission notice – Guidelines on the application of the EU general product safety legislative framework by businesses](#)

The safety of a product should be assessed taking into account all relevant aspects of the product, in particular its characteristics, such as the physical, mechanical and chemical characteristics, and its presentation, as well as the specific needs and risks which the product represents for certain categories of consumers who are likely to use the products, in particular children, older persons and persons with disabilities. Those risks can also include environmental risk insofar as it poses a risk to the health and safety of consumers. That assessment should take into account the health risk posed by digitally connected products, including the risk to mental health, especially of vulnerable consumers, in particular children. Therefore, when assessing the safety of digitally connected products likely to have an impact on children, manufacturers should ensure that the products they make available on the EU market meet the highest standards of safety, security and privacy by design, in the best interests of children. Furthermore, if specific information is necessary to make products safe for a certain category of persons, the assessment of the safety of the products should take into consideration also the presence of that information and its accessibility. The safety of all products should be assessed taking into consideration the need for the product to be safe over its entire lifecycle.

10.5. Relationship between the RED and LVD/EMCD

Radio equipment falling under the scope of the RED are excluded from both the Low Voltage Directive (LVD) and Electromagnetic Compatibility Directive (EMCD):¹⁰⁸

- Art. 1.4 RED: “Radio equipment falling within the scope of this Directive shall not be subject to Directive 2014/35/EU (LVD), except as set out in point (a) of Article 3(1) of this Directive.”
- Art. 2.2(a) EMCD: “This Directive shall not apply to equipment covered by Directive 1999/5/EC.”¹⁰⁹

Therefore, where RED is applicable to radio equipment, the LVD and EMCD do not apply, however RED refers to the essential requirements of the LVD and EMCD (on the essential requirements, see Section 3).

¹⁰⁶ [Directive 2014/35/EU](#) of the European Parliament and of the Council of 26 February 2014 on the harmonisation of the laws of the Member States relating to the making available on the market of electrical equipment designed for use within certain voltage limits.

¹⁰⁷ [Directive 2014/30/EU](#) of the European Parliament and of the Council of 26 February 2014 on the harmonisation of the laws of the Member States relating to electromagnetic compatibility.

¹⁰⁸ The RED, in Article 3.1, refers to the essential requirements of the LVD and the EMCD.

¹⁰⁹ [Directive 1999/5/EC](#) (R&TTED) is replaced by the RED, according to Art. 50 RED references to the replaced Directive shall be construed as references to this Directive.

10.6. Relationship between the RED and Directive 2013/35/EU¹¹⁰

Within the European Union, the general arrangements for ensuring the health and safety of workers are set out in the Framework Directive (89/391/EEC). The Directive (2013/35/EU) essentially gives additional detail on how to achieve the objectives of the Framework Directive for the specific situation of work electromagnetic fields (EMF).

The RED is applicable to products whether they are intended for the public such as children, adults, people with health issues or for workers. This means that radio equipment under the RED must be safe for all end-users, addressing also EMF risks.

EMF harmonised standards cited in support of the RED follow the limits set out in Council Recommendation 1999/519/EC, for radio equipment intended for use by the general public, and the limits set out in Directive 2013/35/EU, for radio equipment used intended for workers in a working environment.

As part of the safety instructions to be provided with the radio equipment, manufacturers of such equipment should include instructions to the user in case of any necessary special care to make the intended use very clear and provide the necessary safety instructions.

This will also help the person responsible for assessing the safety of such products under Directive 2013/35/EU.

Directive 2013/35/EU is not a EU product harmonisation legislation Directive, this means that the EU-DoC should not contain references to that Directive. The instructions can contain additional information to help assessments under that Directive.

10.7. Legislation on batteries

Many radio equipment have integrated batteries, battery legislation (Directive 2006/66/EC)¹¹¹ is applicable. The new battery legislation (EU) 2023/1542¹¹² applies from 18th August 2024. This Regulation lays down requirements on sustainability, safety, labelling, marking and information to allow the placing on the EU market or putting into service of batteries within the Union. Which means that there are requirements about removability and replaceability. It also lays down minimum requirements for extended producer responsibility, the collection

¹¹⁰ Directive 2013/35/EU of the European Parliament and of the Council of 26 June 2013 on the minimum health and safety requirements regarding the exposure of workers to the risks arising from physical agents (electromagnetic fields) (20th individual Directive within the meaning of Article 16(1) of Directive 89/391/EEC) and repealing Directive 2004/40/EC

¹¹¹ [Directive 2006/66/EC of the European Parliament and of the Council of 6 September 2006 on batteries and accumulators and waste batteries and accumulators and repealing Directive 91/157/EEC](#)

¹¹² [Regulation \(EU\) 2023/1542 of the European Parliament and of the Council of 12 July 2023 concerning batteries and waste batteries, amending Directive 2008/98/EC and Regulation \(EU\) 2019/1020 and repealing Directive 2006/66/EC](#)

and treatment of waste batteries and for reporting. More information on the legislation on batteries may be found on the website of the Commission¹¹³.

10.8.Product contact points

[Product contact points](#) provide economic operators, at their request and free of charge, with information concerning the national transposition and implementation of the RED.

10.9.Other applicable or related EU legislation that relates to AI, cybersecurity or related matters

10.9.1. General Data Protection Regulation 2016/679 (GDPR)

GDPR is about the process (ex-post), i.e. how the data are managed, by imposing requirements/obligations on data controllers, processors, etc. It does not concern market access of products.

On the other hand, the RED is about the compliance of products at the time of their placing on the EU market (ex-ante). It also provides procedures for withdrawing products from the EU market when they do not comply with the applicable requirements. RED includes also elements related to cybersecurity (fraud, personal data, privacy) which will be applicable from 1 August 2025 (EU) 2022/30 & (EU) 2023/2444 which will ensure that the products in question incorporate the necessary technical solutions and will thus supplement the proper functioning of the GDPR.

10.9.2. E-privacy Legislation

It is a *lex specialis* to the GDPR, as it aims at particularizing and complementing the latter. Like the GDPR, it does not concern market access of products.

On the other hand, the RED is about the compliance of products at the time of their placing on the EU market (ex-ante) and provide also procedures for withdrawing non-compliant products from the EU market. See GDPR (above)

10.9.3. EU Cybersecurity Act (CSA)¹¹⁴

This Act provides for voluntary certification scheme (s).

According to CSA, the specified requirements of the European cybersecurity certification scheme shall be consistent with any applicable legal requirements, in particular requirements emanating from harmonised Union law.

¹¹³ https://environment.ec.europa.eu/topics/waste-and-recycling/batteries_en

¹¹⁴ Regulation (EU) 2019/881

Where a specific Union legal act so provides, a certificate or an EU statement of conformity issued under a European cybersecurity certification scheme may be used to demonstrate the presumption of conformity with requirements of that legal act.

In the absence of harmonised Union law, Member State law may also provide that a European cybersecurity certification scheme may be used for establishing the presumption of conformity with legal requirements.

10.9.4. Cyber Resilience ACT (CRA)¹¹⁵

The CRA establishes a uniform set of mandatory cybersecurity requirements for most hardware and software products placed on the European Union market. Covered products must be more secure when placed on the EU market ("security by design"). It applies broadly to products with digital elements, including Internet of Things (IoT) devices, operating systems, software, and firewalls. Certain products already covered by existing specific regulations (e.g., medical devices, cars, aviation) are generally excluded.

CRA is applicable from 11th December 2027. As of that date, Commission Delegated Regulation (EU) 2022/30 is repealed pursuant to Commission Delegated Regulation (EU) 2026/339¹¹⁶. **For the aspects of cybersecurity, radio equipment placed on the EU market on or after 11 December 2027 will be** subject to the requirements of Regulation (EU) 2024/2847 (CRA), and not to Article 3(3)(d)-(f) of the RED. This is without prejudice to the transitional provisions of Article 69 of the CRA (see relevant guidance documents relating to the CRA).

10.9.5. General Product Safety Regulation (EU) 2023/988 (GPSR)¹¹⁷

See section 10.4

10.9.6. Artificial Intelligence Act (AI Act)

The EU AI Act¹¹⁸ is the European Union's comprehensive legal framework for artificial intelligence, designed to regulate AI based on risk, ensuring it is trustworthy, human-centric, and compliant with fundamental rights and ethical values. It categorizes AI systems into different risk levels, from banned "unacceptable risk" applications to high-risk systems with strict

¹¹⁶ Commission Delegated Regulation (EU) 2026/339 of 16 February 2026 repealing Delegated Regulation (EU) 2022/30.

¹¹⁷ [Regulation \(EU\) 2023/988 of the European Parliament and of the Council of 10 May 2023 on general product safety, amending Regulation \(EU\) No 1025/2012 of the European Parliament and of the Council and Directive \(EU\) 2020/1828 of the European Parliament and the Council, and repealing Directive 2001/95/EC of the European Parliament and of the Council and Council Directive 87/357/EEC](#)

¹¹⁸ [Regulation \(EU\) 2024/1689](#) of the European Parliament and of the Council of 13 June 2024 laying down harmonised rules on artificial intelligence and amending Regulations (EC) No 300/2008, (EU) No 167/2013, (EU) No 168/2013, (EU) 2018/858, (EU) 2018/1139 and (EU) 2019/2144 and Directives 2014/90/EU, (EU) 2016/797 and (EU) 2020/1828 (Artificial Intelligence Act)

requirements, and minimally regulated applications. The Act aims to foster innovation while protecting citizens and establishing a global standard for AI regulation.

10.10. National legislation

National legislation can regulate aspects outside the scope of the EU harmonisation legislation (such as the RED), subject to the limits set by EU law. Economic operators should be aware of such national legislation that can affect the making available of products covered by the RED, e.g. national legislation that obliges that certain information needs to be provided for online sales such as the requirement to obtain a license before the use, or the obligation to display the SAR values in the manual or in advertisements or prohibiting the use or installation of specific radio equipment in certain applications or environments.

11. INTERNAL MARKET EMERGENCY AND RESILIENCE ACT (IMERA)

Amending Directive (EU) 2024/2749 seeks to avoid disruptions to the internal market in the event of an emergency by ensuring that, once an **internal market emergency mode** as set out in Regulation (EU) 2024/2747 (the [Internal Market Emergency and Resilience Act](#)) has been activated by means of an [implementing act](#) adopted by the [Council of the European Union](#), designated **crisis-relevant goods and services** can be placed on the market as rapidly as possible.

Directive (EU) 2024/2749 amends RED setting out how these emergency procedures would apply. Among other things, the new rules:

- require conformity-assessment² bodies to prioritise applications for conformity for products that are crisis-relevant over those for products that are not;
- permit EU Member States' competent authorities to presume that equipment placed on the EU market (manufactured in accordance with EU standards, relevant national or international standards developed by an accredited standardisation body that can, in the Commission's opinion, achieve conformity and ensure a level of protection equivalent to that of the European harmonised standards) complies with the relevant essential requirements;
- allow Member States, on an **exceptional basis** and where there is a **duly justified request**, to **temporarily authorise the placing on the EU market of equipment** without carrying out the normal conformity assessment procedures, where the involvement of a notified body is mandatory and can ensure all essential requirements are met;
- give the Commission the possibility to adopt, by means of implementing acts, **common specifications** on which the manufacturers can rely in order to benefit from a presumption of conformity with the applicable essential requirements (implementing acts laying down those common specifications remain applicable for the duration of the internal market emergency mode).

12. MISCELLANEOUS

12.1. Non-exhaustive list of graphical examples as guidance to assess radio equipment as “internet-connected radio equipment”

The following illustrations aim to assist in the assessment of whether a radio equipment qualifies as “internet-connected radio equipment” or not. These illustrations do not intend to provide absolute conclusions, as it remains under the responsibility of the manufacturer to assess their radio equipment on a case-by-case basis. Instead, these illustrations aim to guide towards an alignment in the assessment of products placed on the EU market.

Furthermore, it should be noted that the approach to analysis in this annex is technology neutral. This annex does not intend to indicate whether one specific technology is affected by the delegated regulation or not. The following examples solely focus on providing clarifications for the term “internet-connected radio equipment”, which is key for the application of the Delegated Regulation (EU) 2022/30.

Keys for illustrations



Assessment perimeter - Non-Internet connected radio equipment



Assessment perimeter-Internet connected radio equipment



radio interface



Wired connection



Wireless connection



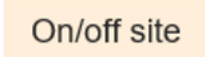
Internet



Internet ready : any protocol that allows internet communication

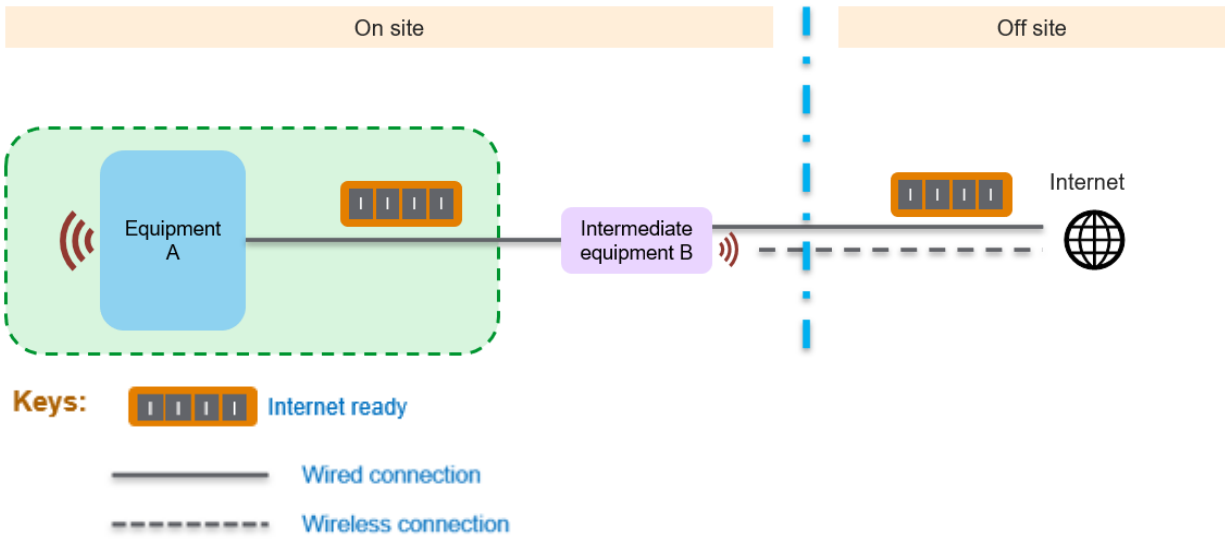


Non-internet ready : a protocol that doesn't allow Internet communication



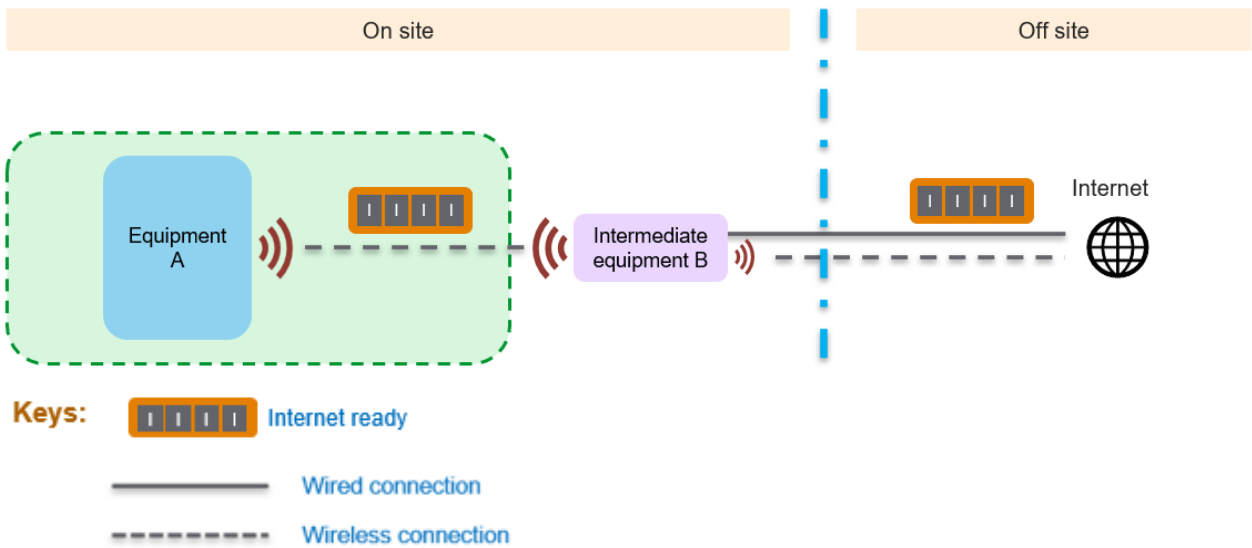
Area of use of the equipment (informative)

Case 1



Equipment A	
Is it radio equipment falling under the scope of the RED?	Yes. The equipment has radio functionality.
Is it internet-connected radio equipment? (According to article 1 of Delegated Regulation (EU) 2022/30)	Yes. The equipment operates a protocol (open or proprietary) that allows communication over the internet via wired connection via intermediate equipment (indirectly connected).

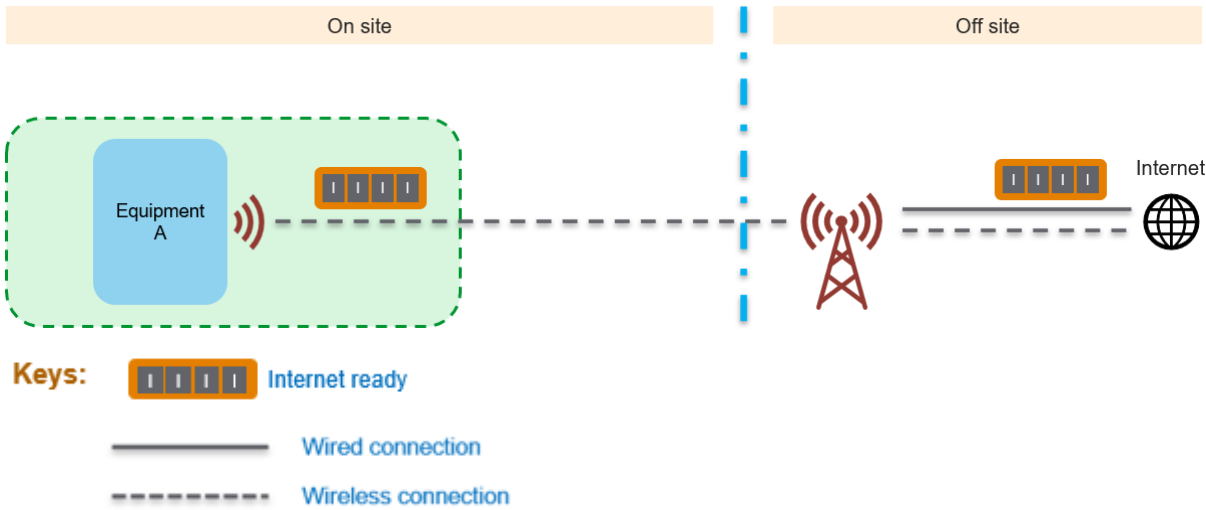
Case 2



Equipment A	
Is it radio equipment falling under the scope of the RED?	Yes. The equipment has radio functionality.
Is it internet-connected radio equipment? (According to article 1 of Delegated Regulation (EU) 2022/30)	Yes. The equipment operates a protocol (open or proprietary) that allows communication over the internet via

	intermediate equipment (indirectly connected).
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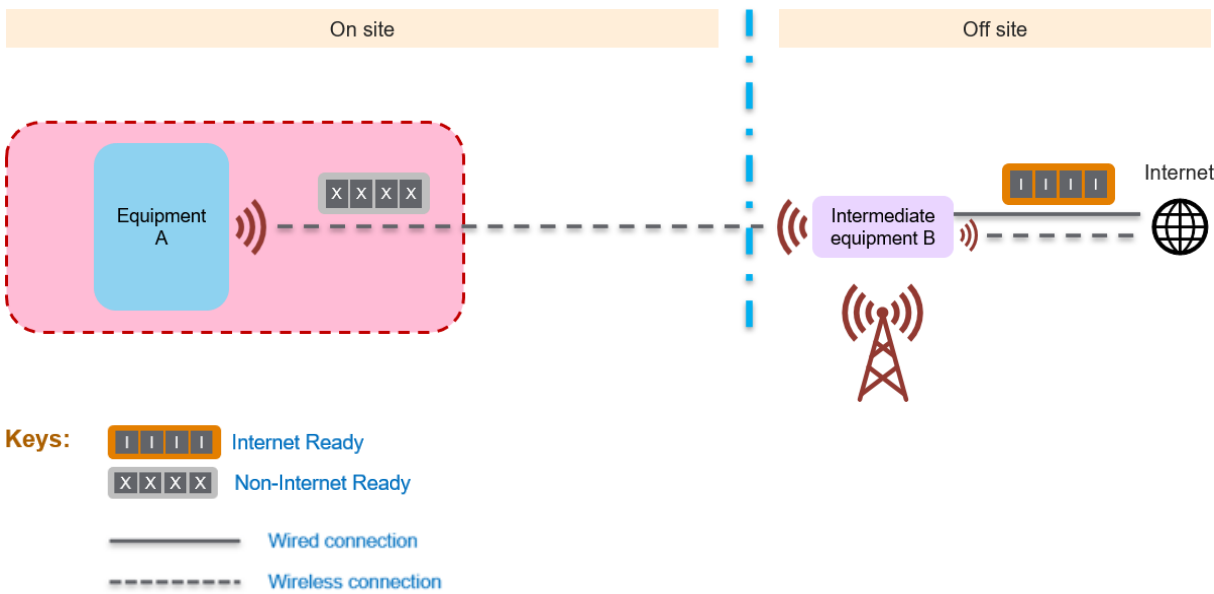
Case 3



Equipment A

Is it radio equipment falling under the scope of the RED?	Yes. The equipment has radio functionality.
Is it internet-connected radio equipment? (According to article 1 of Delegated Regulation (EU) 2022/30)	Yes. The equipment operates a protocol (open or proprietary) that allows communication over the internet (directly connected).

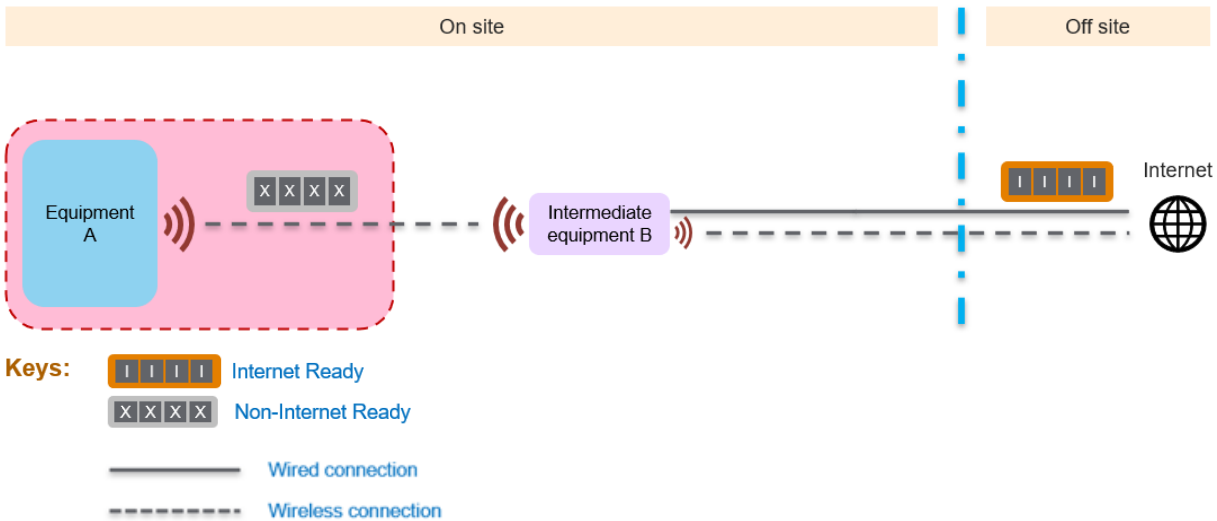
Case 4



Equipment A

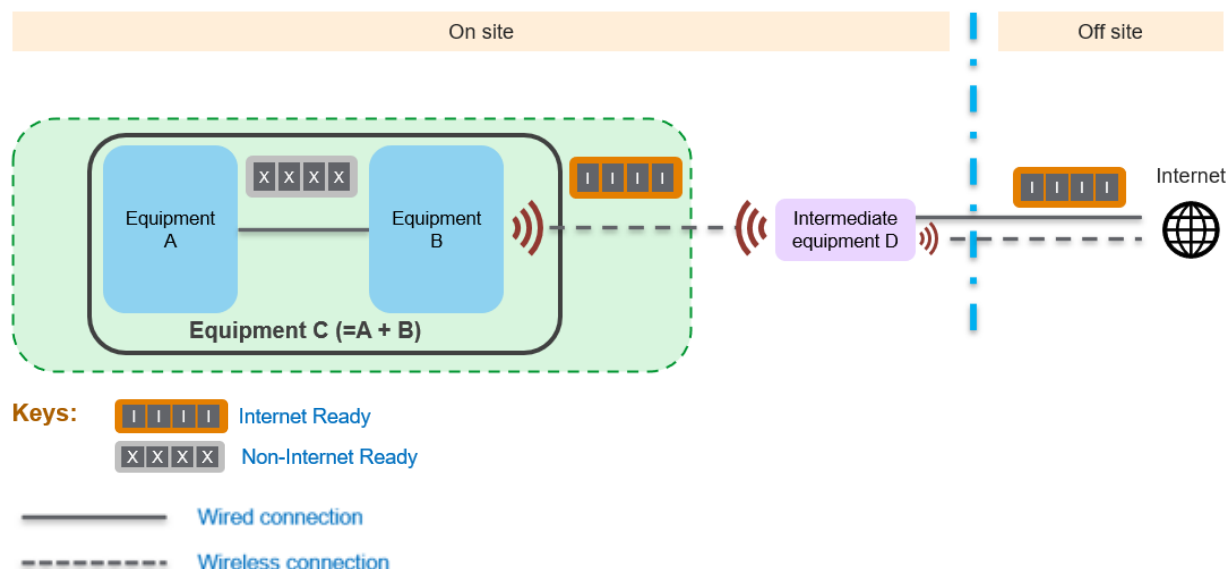
Is it radio equipment falling under the scope of the RED?	Yes. The equipment has radio functionality.
Is it internet-connected radio equipment? (According to article 1 of Delegated Regulation (EU) 2022/30)	No. The equipment does not operate a protocol (open or proprietary) that allows communication over the internet. In this case the risk assessment performed by the manufacturer shall determine if the radio equipment is not capable to communicate with the internet or be accessed from the internet.

Case 5



Equipment A	
Is it radio equipment falling under the scope of the RED?	Yes. The equipment has radio functionality.
Is it internet-connected radio equipment? (According to article 1 of Delegated Regulation (EU) 2022/30)	No. The equipment does not operate a protocol (open or proprietary) that allows communication over the internet. In this case the risk assessment performed by the manufacturer shall determine if the radio equipment is not capable to communicate with the internet or be accessed from the internet.

Case 6



Equipment A

Is it radio equipment falling under the scope of the RED?	No. The equipment has no radio functionality.
Is it internet-connected radio equipment? (According to article 1 of Delegated Regulation (EU) 2022/30)	This is irrelevant since Equipment A is not radio equipment within the RED.

Equipment B

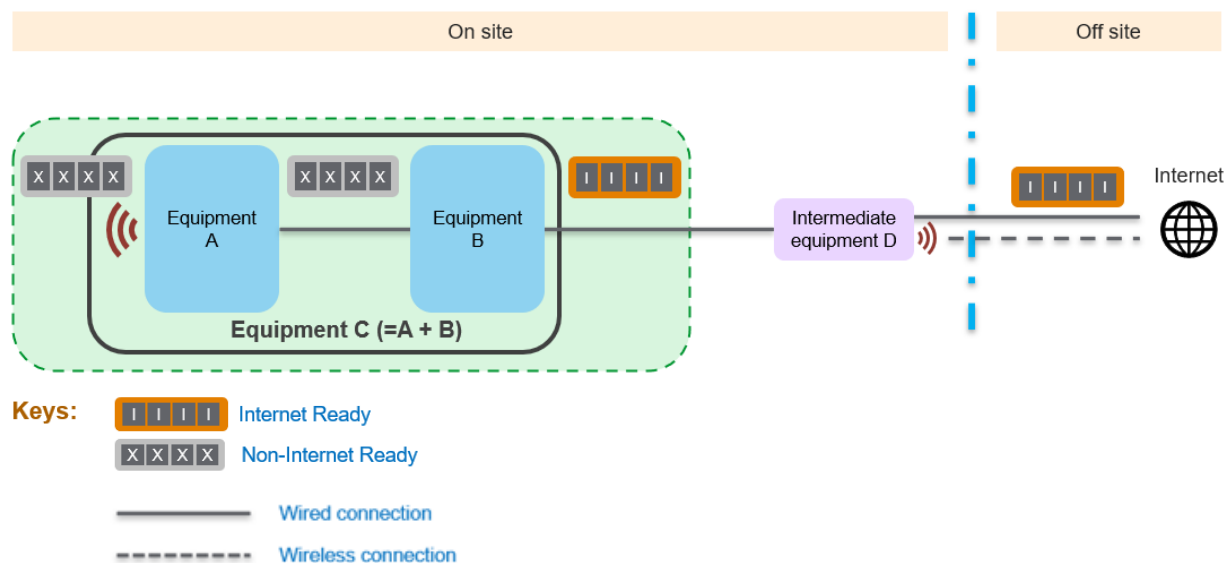
Is it radio equipment falling under the scope of the RED?	Yes. The equipment has radio functionalit
Is it internet-connected radio equipment? (According to article 1 of Delegated Regulation (EU) 2022/30)	Yes. The equipment operates a protocol (open or proprietary) that allows communication over the internet via intermediate equipment (indirectly connected).

Equipment C¹¹⁹

Is it radio equipment falling under the scope of the RED?	Yes. The combined equipment ³ has radio functionality.
Is it internet-connected radio equipment? (According to article 1 of Delegated Regulation (EU) 2022/30)	Yes. The combination of equipment A and equipment B makes equipment C, internetconnected radio equipment. See Case#2

¹¹⁹ Equipment C is a combined equipment (combination of radio and non-radio equipment) according to section 1.7.3.1

Case 7



Equipment A	
Is it radio equipment falling under the scope of the RED?	Yes. The equipment has radio functionality.
Is it internet-connected radio equipment? (According to article 1 of Delegated Regulation (EU) 2022/30)	No. The equipment does not operate a protocol (open or proprietary) that allows communication over the internet.
Equipment B	
Is it radio equipment falling under the scope of the RED?	No. The equipment has no radio functionality.
Is it internet-connected radio equipment? (According to article 1 of Delegated Regulation (EU) 2022/30)	This is irrelevant since Equipment B is not radio equipment within the RED.
Equipment C ¹²⁰	
Is it radio equipment falling under the scope of the RED?	Yes. The equipment has radio functionality.
Is it internet-connected radio equipment? (According to article 1 of Delegated Regulation (EU) 2022/30)	Yes. The combination of equipment A and equipment B makes equipment C, internetconnected radio equipment. See Case #1

¹²⁰ Equipment C is a combined equipment (combination of radio and non-radio equipment) according to section 1.7.4.1

12.2.Common Charger Info Sheet

Introduction

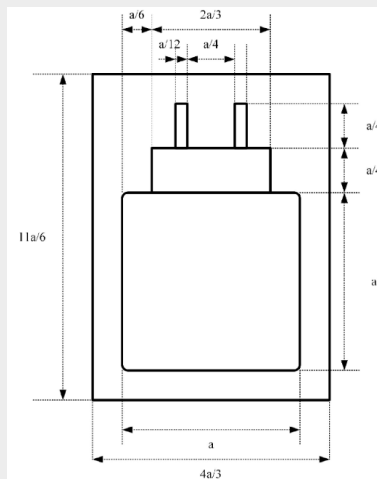
Determined categories or classes of radio equipment (see “Application”) covered by the Directive (EU) 2014/53 (RED - Radio Equipment Directive) and capable of being recharged by means of wired charging shall:

Be equipped with the USB Type-C receptacle, as described in the standard EN IEC 62680-1-3:2022 and that receptacle shall remain accessible and operational at all times;

- Be capable of being charged with cables which comply with the standard EN IEC 62680-1-3:2022;
- In so far as they are capable of being recharged by means of wired charging at voltages higher than 5 Volts, currents higher than 3 Amperes or powers higher than 15 Watts, the categories or classes of radio equipment referred to in point “Application” shall:
 - Incorporate the USB Power Delivery, as described in the standard EN IEC 62680-1-2:2022;
 - Ensure that any additional charging protocol allows for the full functionality of the USB Power Delivery as described in the standard EN IEC 62680-1-2:2022, irrespective of the charging device used.
- Following information shall be indicated, and may be made available in addition by means of QR codes or similar electronic solutions:
 - Description of the power requirements of the wired charging devices that can be used with that radio equipment, including the minimum power required to charge the radio equipment, and the maximum power required to charge the radio equipment at the maximum charging speed expressed in Watts by displaying the text: ‘the power delivered by the charger must be between min [xx] Watts required by the radio equipment, and max [yy] Watts in order to achieve the maximum charging speed’. The number of Watts shall express, respectively, the minimum power required by the radio equipment, and the maximum power required by the radio equipment to achieve the maximum charging speed;
 - Description of the specifications relating to charging capabilities of the radio equipment, in so far as it is capable of being recharged by means of wired charging at voltages higher than 5 Volts or currents higher than 3 Amperes or powers higher than 15 Watts, including an indication that the radio equipment supports the USB Power Delivery charging protocol by displaying the text ‘USB PD fast charging’ and an indication of any other supported charging protocol by displaying its name in text format.
 - Information on the specifications relating to the radio equipment’s charging capabilities and the compatible charging devices. In addition to being included in the instructions,

when the manufacturers make such radio equipment available to consumers and other end-users, the information shall be also displayed on a label. The label shall be printed in the instructions and on the packaging or affixed to the packaging as a sticker. In the absence of packaging, the sticker with the label shall be affixed to the radio equipment. When the radio equipment is made available to consumers and other end-users, the label shall be displayed in a visible and legible manner and, in the case of distance selling, close to the price indication. Where the size or nature of the radio equipment does not allow otherwise, the label may be printed as a separate document accompanying the radio equipment.

- The label may vary in appearance (e.g. as to its color, solid or hollow, line thickness), if it remains visible and legible. If the label is reduced or enlarged, the proportions set out in the drawing in point 1 of this Part shall be maintained. **The dimension “a” referred to in point 1 of this Part shall be greater than or equal to 7 mm, irrespective of the variation.”**
- Where an economic operator offers to consumers and other end-users the possibility to acquire the radio equipment together with a charging device, the economic operator shall also offer the consumers and other end-users the possibility of acquiring that radio equipment without any charging device.
- Economic operators has to ensure that the information on whether a charging device is included with the radio equipment is displayed in a graphic form using a user-friendly and easily accessible pictogram when such radio equipment is made available to consumers and other end-users. The pictogram shall be printed on the packaging or affixed to the packaging as a sticker. When the radio equipment is made available to



consumers and other end-users, the pictogram shall be displayed in a visible and legible manner and, in the case of distance selling, close to the price indication.

- The pictogram may vary in appearance (e.g. as to its colour, solid or hollow, line thickness), provided that it remains visible and legible. If the pictogram is reduced or enlarged, the proportions set out in the drawings in point 1 of this Part shall be maintained. **The dimension “a” referred to in point 1 of this Part shall be greater than or equal to 7 mm, irrespective of the variation.**
- information shall be in a language which can be easily understood by consumers and other end-users, as determined by the Member State concerned.

- Directive (EU) 2022/2380 does not cover the charging cable nor the charger itself which will be regulated by Regulation (EU) 2019/1782 and other applicable legislation such as among others LVD (2014/35/EU) and EMCD (2014/30/EU).

Scope/Application

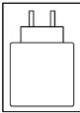
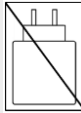
This legislation is applicable to individual products from following categories or classes of radio equipment being recharged by means of wired charging and that will first be placed on the market in the EU:

- from 28/12/2024:
 - handheld mobile phones
 - tablets
 - digital cameras
 - headphones
 - headsets
 - handheld videogame consoles
 - portable speakers
 - e-readers
 - keyboards
 - mice
 - portable navigation systems
 - earbuds
- from 28/04/2026:
 - laptops

Regarding existing products, the new rules will apply to all devices that will first be 'placed on the EU market' in the EU, on or after the entry into application (see above), regardless of whether they are of a 'model' already marketed. The RED does not recognise the notion of 'model', which is a commercial term. This will not prevent existing stock of equipment that have been placed on the EU market before the entry into application of the new rules from being sold legally after the entry into application of the new rules. The 'Blue Guide' contains further detailed guidance on that matter, notably in section 2.

Instructions included with the equipment			
	Paper	QR	WEB
Obligatory			
Voluntary			
The instructions shall be in a language which can be easily understood by consumers and other end-users, as determined by the Member State concerned.			
Text to include in instructions			
Equipment with load capacities $\leq 5\text{ V}$, $\leq 3\text{ A o } \leq 15\text{ W}$		Equipment with load capacities $> 5\text{ V}$, $> 3\text{ A o } > 15\text{ W}$	
“The <i>power delivered by the charger must be between min [xx] Watts required by the radio equipment, and max [yy] Watts in order to achieve the maximum charging speed.</i> ”			
-		“USB PD fast charging”	

Label (it indicates the load capacities supported by the device)			
	Instructions	Packaging	Equipment
Obligatory	✓	✓	(in the absence of packaging)
Equipment with load capacities $\leq 5\text{ V}$, $\leq 3\text{ A}$, $\leq 15\text{ W}$		Equipment with load capacities $> 5\text{ V}$, $> 3\text{ A}$, $> 15\text{ W}$	
			

Pictogram (it indicates if the product comes with a charger)	
	Packaging
Obligatory	✓
If a charging device is included with the equipment	If no charging device is included with the equipment
	

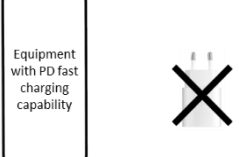
Further information			
• Common	Charger	Directive	https://eur-lex.europa.eu/legal-content/EN/TXT/?uri=uriserv%3AOJ.L_.2022.315.01.0030.01.ENG&toc=OJ%3AL%3A2022%3A315%3ATO
• About Common Charger Directive :	https://single-market-economy.ec.europa.eu/sectors/electrical-and-electronic-engineering-industries-eei/radio-equipment-directive-red/one-common-charging-solution-		

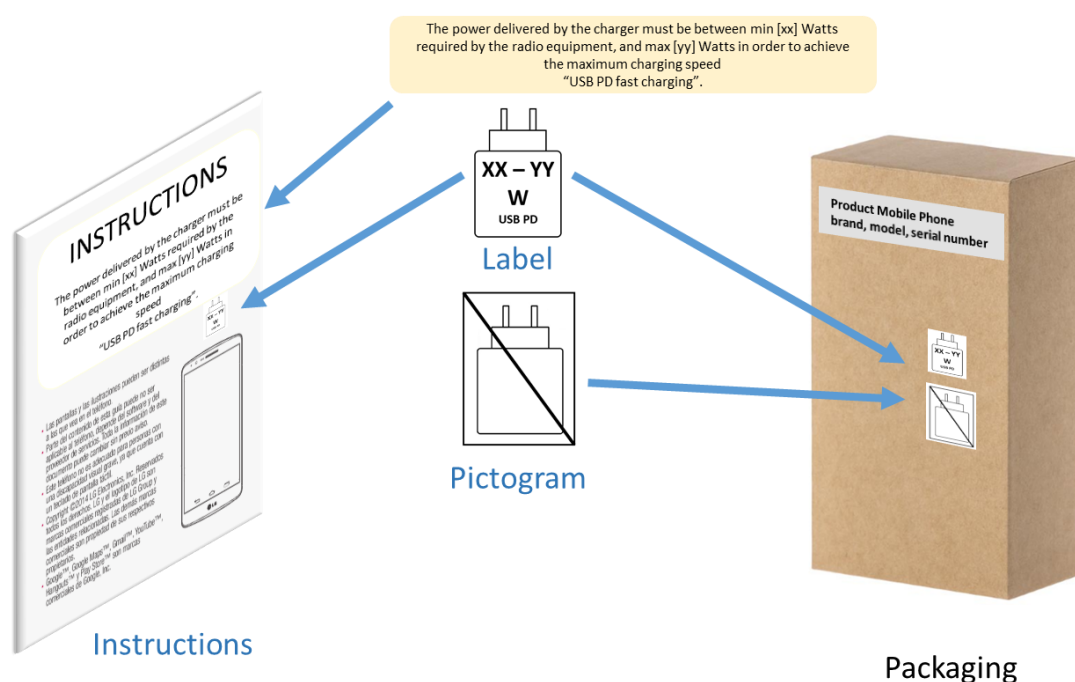
all en

- Guidance on interpreting the Common Charger Directive: https://eur-lex.europa.eu/legal-content/EN/TXT/?uri=OJ:C_202402997

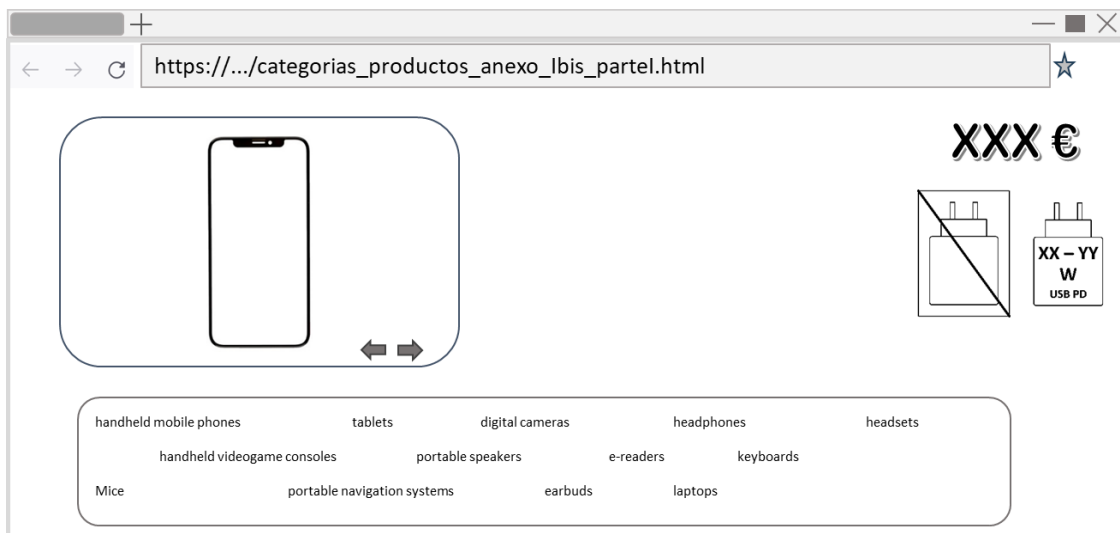
12.3. Common charger - Practical examples for economic operators

Case 1

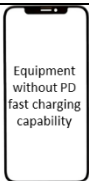
 Equipment with PD fast charging capability	Equipment <u>with</u> PD charging capability that <u>does not</u> include a charging device
---	---

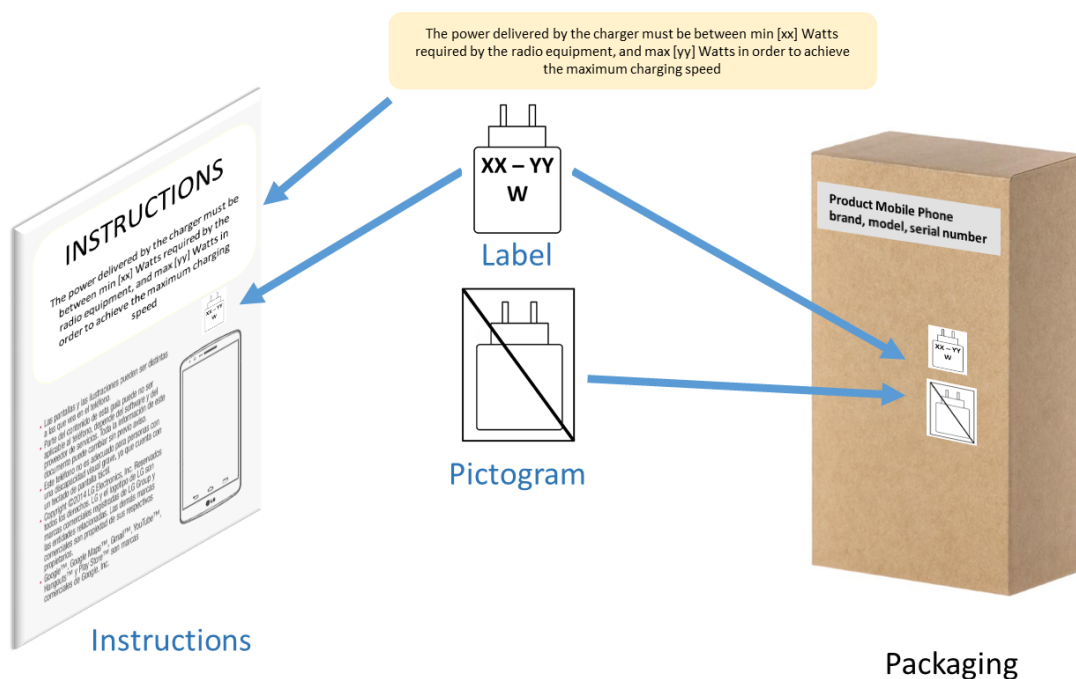


In the case of distance selling, both pictogram and label must be placed close to the price indication.

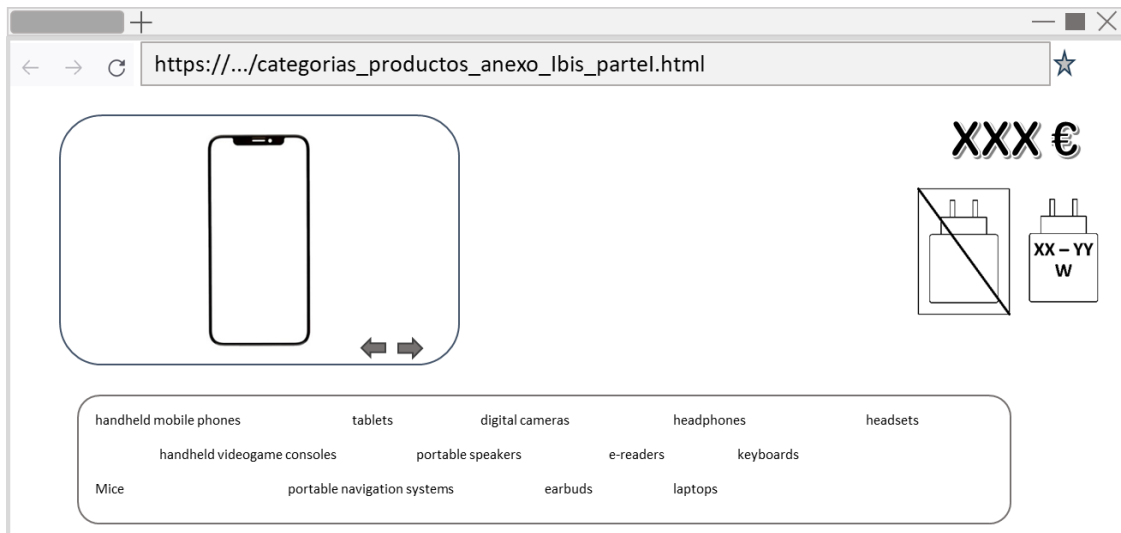


Case 2

 Equipment without PD fast charging capability	Equipment <u>without</u> PD charging capability that <u>does not</u> include a charging device
--	--

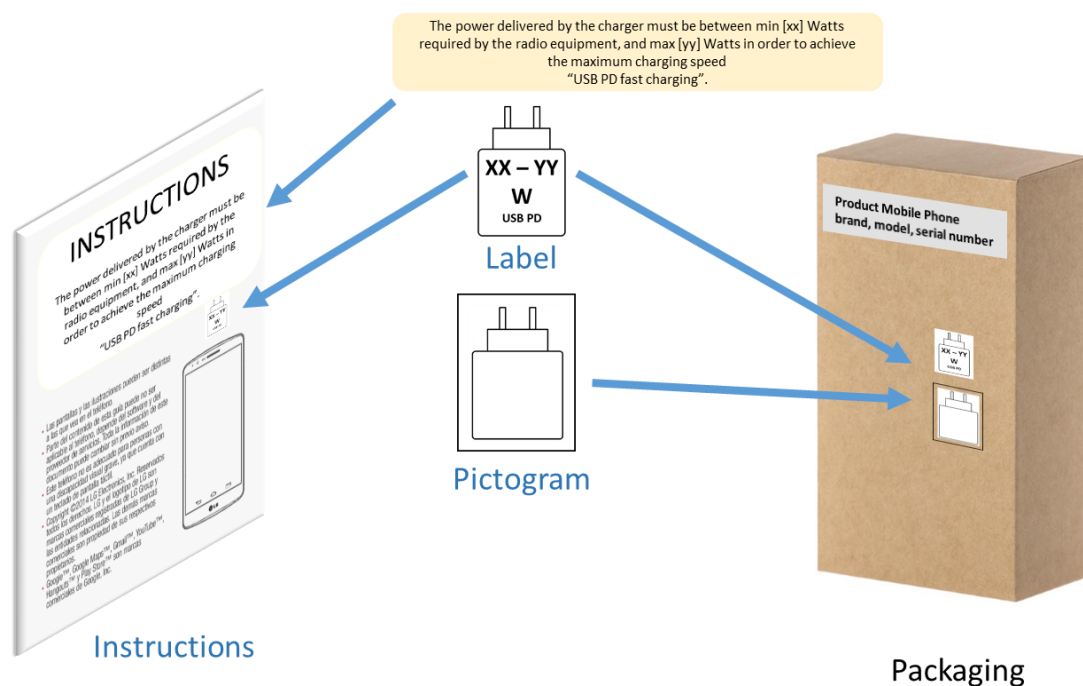


In the case of distance selling, both pictogram and label must be placed close to the price indication.

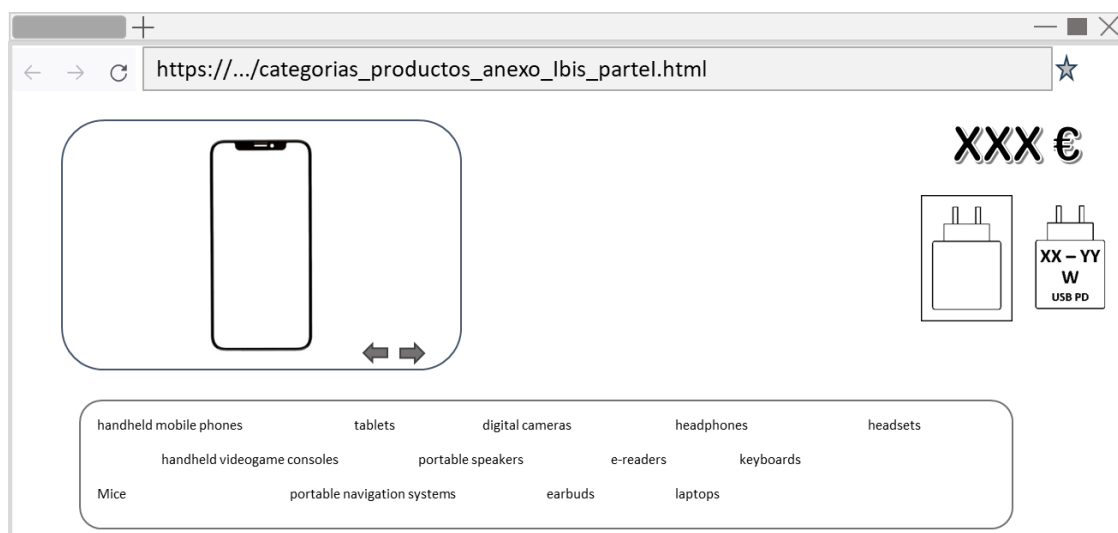


Case 3

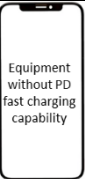
Equipment with PD fast charging capability 	Equipment <u>with</u> PD charging capability that <u>includes</u> charging device
---	---

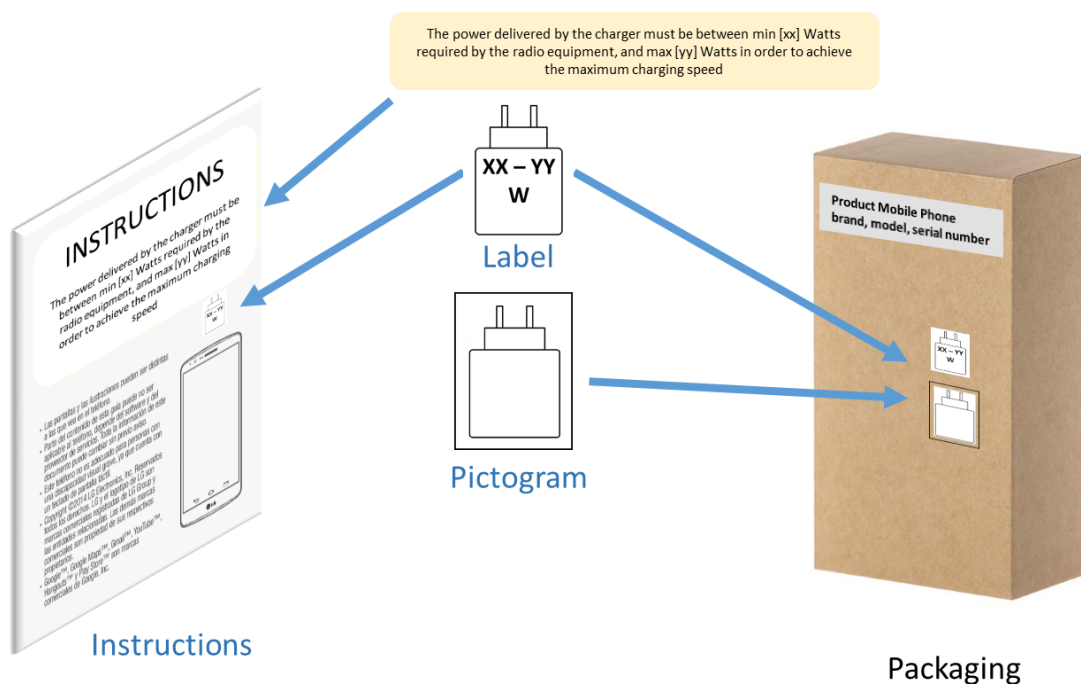


In the case of distance selling, both pictogram and label must be placed close to the price indication.

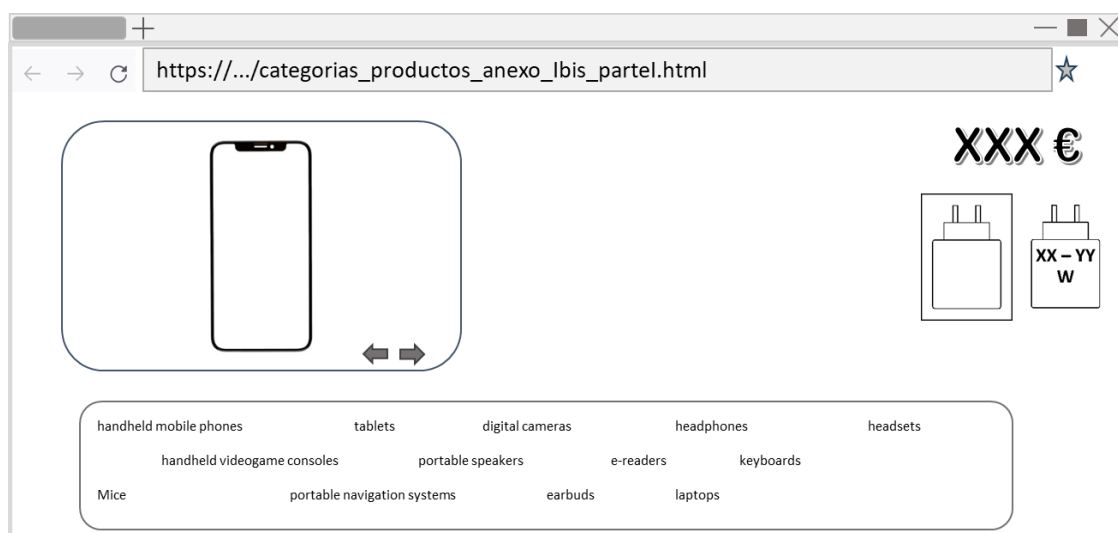


Case 4

 Equipment without PD fast charging capability	Equipment <u>without</u> PD charging capability that <u>includes</u> charging device
--	---



In the case of distance selling, both pictogram and label must be placed close to the price indication.



ANNEX 1 — ORGANISATIONS AND COMMITTEES MENTIONED IN THIS DOCUMENT

ADCO RED (Group on ADministrative COoperation)

is a group formed by the market surveillance authorities of the Member States and countries that have implemented the RED. The group promotes administrative cooperation in the fields of market surveillance, joint market surveillance campaigns, exchange of information and non-conformity issues¹²¹ (http://ec.europa.eu/growth/single-market/goods/building-blocks/market-surveillance/organisation/administrative-cooperation-groups_en).

CENELEC (European Committee for Electrotechnical Standardisation)

is recognised as an official European standards organisation by the European Commission and works under mandates from the Commission to prepare harmonised standards for the RED. Membership is restricted to representatives of national standardisation bodies. CENELEC activities concerning the Directive relate to Article 3.1.a, 3.1.b., 3-3 and 3.4.

<https://www.cenelec.eu/>

CENELEC standards may be purchased through one of the national member bodies: <https://www.cenelec.eu/dyn/www/f?p=web:5>.

More information on CEN :

(<https://standards.cencenelec.eu/dyn/www/f?p=CEN:5>)

and CENELEC

(<https://standards.cencenelec.eu/dyn/www/f?p=CENELEC:5>).

ECO (European Communications Office)

is the permanent office supporting the ECC (Electronic Communications Committee of the CEPT), the committee that brings together the radio and telecommunications regulatory authorities of the 48 CEPT member countries (<http://www.cept.org/eco>).

ETSI (European Telecommunications Standards Institute)

is recognised as an official European standards organisation by the European Commission and works under mandates from the Commission to prepare harmonised standards for the Directive. Membership is open to all interested parties. ETSI activities concerning the Directive relate mostly to Article 3.2, 3.3 and, in part, 3.1.b. <http://www.etsi.org/>.

ETSI standards can be downloaded free of charge via the Publications Download Area application: <http://www.etsi.org/standards-search>.

REDCA (Radio Equipment Directive Compliance Association)

provides a forum for organisations concerned with the compliance of radio equipment with regulations and technical standards in the European Economic Area, as well as in the Countries that have a Mutual Recognition

¹²¹ See also Blue Guide, Chapter 7

Agreement with the EU, such as the USA, Canada, Japan, New Zealand, and Australia (<http://www.redca.eu>).

It has specific responsibilities in respect of Notified Bodies appointed under EU Directive 2014/53/EU (Radio Equipment Directive). In this context it has published several Technical Guidance Notes that can be accessed by following the "Download Area" link alongside.

Membership of REDCA is open to any notified body, testing, manufacturing or other organisation that is willing to follow the aims and objectives set out in the Associations Rules and Constitution. An application form and a full copy of the Rules can be found by following the "Download Area" link alongside.

REDCA operates a mail server where members can ask questions that will trigger answers and comments from the experts within the Association. These discussions provide material to be stored on the protected database for future reference by the members. Furthermore, the Association has a specific protected area on the CIRCABC website, operated by the EU Commission, where all documents are stored for access by the members only.

RSC (Radio Spectrum Committee) assists the Commission in the development and adoption of technical implementing measures aimed at ensuring harmonised conditions for the availability and efficient use of radio spectrum, as well as the availability of information related to the use of radio spectrum. It has no formal remit concerning the Directive, but its activities have a strong influence on the definition of equipment classes in the TCAM and their maintenance by the ECO. For this reason, joint meetings of the RSC and TCAM take place from time to time (<https://digital-strategy.ec.europa.eu/en/policies/radio-spectrum-committee>).

TCAM (Telecommunication Conformity Assessment and Market Surveillance Committee) is the committee set up by article 45 RED within the meaning of Regulation (EU) No 182/2011 to assist the Commission. It is made up of representatives of the Member States and chaired by the Commission. The Commission is obliged to consult the TCAM on matters relating to shortcomings in harmonised standards, in cases where a safeguard measure has been taken to remove a product from the market and on surveillance activities in general. Some TCAM documents are made publicly available after the meetings on Internet¹²².

¹²² https://circabc.europa.eu/faces/jsp/extension/wai/navigation/container.jsp?FormPrincipal:_idcl=FormPrincipal:_id1&FormPrincipal_SUBMIT=1&id=f6e8f574-6864-4350-94bb-1719fe29a6c0&javax.faces.ViewState=%2B9VJT3vhuU6fi%2F4U2ZxLHHRqgbnj16Z%2FjNbNBO7GK7%2F%2BX%2FUTx9Nftqi4W12CVBCiHMfgqIEraKdw6%2BgGZrW0EVjBIJtjxvA%2B%2BFYojkc%2FArAMc2IEQIdIwlkGjzYrbmt2sa%2BeXHTJop6QPF8zNWJ6P7WbxA%3D

(> Browse categories / (European Commission > Marché intérieur, industrie, entrepreneuriat et PME > RED : Commission Expert Group on Radio Equipment > Library > Meeting (Public)

EG RE (Expert Group on the radio equipment directive)

which assists the Commission in relation to the implementation of existing Union legislation, programs and policies, in the preparation of delegated acts, in the preparation of legislative proposals and policy initiatives. [Terms of reference](#) are available on Internet¹²³ .

¹²³ <https://ec.europa.eu/transparency/expert-groups-register/core/api/front/expertGroupAdditionalInfo/43125/download>

ANNEX 2 — ACRONYMS AND ABBREVIATIONS

ACAA	Agreements on Conformity Assessment and Acceptance
AIA	Artificial Intelligence Act
AIS	Automatic Identification System
AMRD	Autonomous Maritime Radio Device
ADCO RED	Group on ADministrative COoperation on RED (see Annex 1)
CAP	Conformity Assessment Procedure
CATV	Community Antenna Television
CENELEC	European Committee for Electrotechnical Standardisation (see Annex 1)
CIRCABC	Communication and Information Resource Centre for Administrations, Businesses and Citizens
CRA	Cyber Resilience Act
DCFTA	Deep and Comprehensive Free Trade Area
DoC	EU Declaration of Conformity
DOW	Date of Withdrawal
DPP	Digital Product Passport
DVB	Digital Video Broadcasting
DVB-T	Digital Video Broadcasting — Terrestrial
ECO	European Communications Office is the permanent office of the European Conference of Postal and Telecommunications Administrations (CEPT), the organisation through which policymakers and regulators from 46 member countries coordinate and harmonise telecommunications, radio spectrum and postal policies across Europe
EEA	European Economic Area
EFIS	European Frequency Information System
EFTA	European Free Trade Association
EG RE	Expert Group on Radio Equipment directive
EMC	Electromagnetic Compatibility
EMCD	Electromagnetic Compatibility Directive (2014/30/EU)

EMF	Electromagnetic Field
ErP	ecodesign for Energy-Related Products
ETSI	European Telecommunications Standards Institute (see Annex 1)
EU	European Union
FIR	Far Infrared
GDPR	General Data Protection Regulation
GMDSS	Global Maritime Distress and Safety System
GPSD	General Product Safety Directive (2001/95/EC)
GPSR	General Product Safety Regulation (EU) 2033/988
hEN	Harmonized European Norm
IMERA	Internal Market Emergency and Resilience act
IMO	International Maritime Organization
IR	Infrared
ITU	International Telecommunication Union
LVD	Low Voltage Directive (2014/35/EU)
MRA	Mutual Recognition Agreement
NB	Notified Body
NFC	Near Field Communication
NLF	New Legislative Framework
NRI	National Radio Interface
OJEU	Official Journal of the European Union
PC	Personal computer
PID	Product Identity Declaration
REACH	Registration, Evaluation, Authorisation and Restriction of Chemicals
RED	Radio Equipment Directive (2014/53/EU)
RSC	Radio Spectrum Committee ³ (see Annex 1)
R&D	Research & Development
R&TTED	Directive on radio equipment and telecommunications terminal equipment and the mutual recognition of their conformity (1999/5/EC)
REDCA	Radio Equipment Directive Compliance Association (see Annex 1)

RF	Radio Frequency
RFID	Radio Frequency Identification
RoHS	Removal of Hazardous Substances
SDR	Software Defined Radio
SOLAS	Safety of Life at Sea
TCAM	Telecommunication Conformity Assessment and Market Surveillance Committee (see Annex 1)
TD	Technical Documentation
TETRA	Terrestrial Trunked Radio
TGN	Technical Guidance Note
UAS	Unmanned Aerial System
UNECE	United Nations Economic Commission for Europe
URL	Uniform Resource Locator
USB	Universal Serial Bus
WEEE	Waste Electrical and Electronic Equipment
WLAN	Wireless Local Area Network